

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

State of Oregon vs ASHLE ANTOINETTE PENN

ORDER

Case No: 24CR49043

Proceeding: Arraignment

FTR Courtroom: LEC1

☐ Citation ☐ Release Agreement

The following persons appeared:

Defendant: ASHLE ANTOINETTE PENN

Attorneys: DA: Hill

Defense Atty: Garcia

☒	Appointed:	☐	CLG	☐	HLG	☐	MPD	☒	ODAC	☐	OPDC	☐	R&A
☐	Retained:	☐	To be Retained		☐	Waived Attorney							
☐	Interpreter:	☐	DUII Advisory Coun.		☐	Deferred Sentencing Coun.							
☐	Spanish	☐	Other:										

Defendant:

If you are arraigned on a Domestic Violence or Sex Crime, you are **prohibited** from contacting the named victim even while in custody.

☐	Appeared by counsel	☒	In Custody	☐	Out of Custody
☐	Reset to:	at the request of:			
☐	Name corrected – True name:				
☐	Waived speedy constitutional trial/ 60-day rights for this continuance or waiver of 14-day for Probation Viol. Hrg.				
☐	Waived Extradition	☐	Requested Governors Warrant		

Arraignment:

☒	Defendant given copy of charging instrument	☒	Arraigned	☒	Rights Given	☐	Waived
☐	Book and release unless a crime under Measure 11, ORS 137.700, including out-of-county bookings. New release agreement with standard conditions is required for out-of-county book and release.						

Preliminary Hearing:

☐	Prelim Waived By:	☐	Probable cause found on Ct(s):	☐	Probable cause not found on Ct(s):
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Plea:

☐	Not Guilty	☐	Guilty	☐	Deny	☐	Admit	☐	No Contest
☐	Failed to Appear								
☐	Revoke Release	☐	Bench Warrant Ordered	☐	Arrest Warrant Ordered	☐	Security Amt:\$		
☐	Judgment of Dismissal								
☐	Other:								

Next Court Appearance:

Preliminary Hg 09-26-2024 at 3:00PM

9/19/2024 2:37:07 PM

Elizabeth R Lemoine
Circuit Court Judge, Elizabeth Lemoine

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124

State of Oregon
vs
ASHLE ANTOINETTE PENN

Case No: 24CR49043

Recommendation Re:
Court-Appointed Counsel

Case Type: Offense Felony

Charges:

Theft in the First Degree; Unlawful Possession of Methamphetamine

Based on the applicant's Declaration, I recommend the following:

Applicant is:

☐	Financially Eligible for court-appointed counsel
☐	Not Financially Eligible for court-appointed counsel
☐	Continued based upon a previously submitted Declaration approved in Case No:
☐	No Recommendation (judge to review declaration)
☒	The defendant is in custody and a Declaration has not been completed to base a recommendation on

The \$20 Application Fee should be:

☐	Ordered: Due in 30 days
☐	Ordered: Due in 30 days after an attorney is appointed
☐	Waived

A Contribution Amount is (Maximum Contribution Amount from schedule is \$381)

☐	Ordered in the amount of , due in 30 days
☐	Ordered in the amount of , due in 30 days after an attorney is appointed
☐	Waived

9/19/2024
Date

Betsy Romero
Verification Specialist

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124

Case No: 24CR49043

State of Oregon
vs
ASHLE ANTOINETTE PENN

Order Re:
Court-Appointed Counsel

Case Type: Offense Felony

The court orders as follows:

The applicant's request for court-appointed counsel is:

☐	Denied
☒	Approved (attorney name): ODAC is appointed as counsel for the defendant, contingent upon further verification
☒	Attorney contract or fee disputes shall be referred to the Presiding Judge
☐	Continue previous appointment of counsel

The \$20 Application Fee is:

☐	Ordered , in the amount shown on the related Limited/Supplement Judgment of the court
☐	Waived

The Contribution Amount of , is:

☐	Ordered , in the amount shown on the related Limited/Supplement Judgment of the court
☐	Waived

9/19/2024 1:41:58 PM



Circuit Court Judge, Elizabeth R Lemoine

By Deputy Clerk: 

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

ORDER on ☒ Release Hearing
☐ Release Status Check
☐ Modification of Release
☐ Violation of Release

STATE OF OREGON) Case No. 24CR49043
Plaintiff,) Deputy DA Hill
vs) Defense Atty Garcia
Ashlee Antoinette Penn) Interpreter _____
Defendant.) Hearing Date 9/19/24

This matter having come before the Court with:

☒ Defendant present ☒ In Custody
☐ Defendant not present

it is hereby ORDERED by the Court that:

Security Release: ☒ Same / ☒ New Security Amount: \$ 2,500 (Post 10%)
_____ Conditional Release, with special conditions as listed below
_____ NO FORCED RELEASE

Special Conditions:

- _____ 1. Responsible person, approved by Court Release Office: _____
- _____ 2. Reside with responsible person or: _____
- _____ 3. Obey all house rules
- _____ 4. Curfew from _____ PM to _____ AM
- _____ 5. House arrest
- _____ 6. Not to leave the residence unless with the responsible person
- _____ 7. Not to leave residence unless with person(s) approved by Court Release Office
- _____ 8. May leave residence for school, work, counseling, legal, medical, other _____
- ☒ 9. Not to possess or consume (a) alcohol, (b) illegal drugs, (c) dangerous or deadly weapons, (d) other _____
- ☒ 10. Not to have any contact with (a) victim, (b) family of victim, (c) witnesses Target
- _____ 11. Pretrial Electronic Monitoring through Vigilnet: (a) GPS, (b) alcohol, (c) both
- _____ 12. Report to PO in person within 24 hours of release from custody
- _____ 13. Report address to the Court in writing upon release from custody
- _____ 14. Sign and abide by the "no contact with minors" addendum
- _____ 15. May not operate a motor vehicle without valid license and insurance
- _____ 16. Not possess ID, checks or credit cards that do not belong to defendant
- ☒ 17. Additional conditions ordered by the Court: No contact w/ Co-Defendant Barry Washington.

24CR49043
ORBS
Order - Setting Bail Security
18415826



Next court date, time & courtroom: _____

Dated 9/19/24

Elizabeth Lemer
Judge's Signature (Please print or stamp name below)

ERC

Verified Correct Copy of Original 9/19/2024

IN THE CIRCUIT COURT OF THE STATE OF OREGON FOR WASHINGTON COUNTY

STATE OF OREGON,

Plaintiff,

vs.

ASHLE ANTOINETTE PENN,

Defendant.

No. 24CR49043

DISTRICT ATTORNEY'S
INFORMATION

2024 SEP 19 A 11:43

FILED
OREGON JUDICIAL DEPT
WASHINGTON COUNTY

The above-named defendant is accused by this information of the crime(s) of

Count 1: THEFT IN THE FIRST DEGREE (FSG= 3; C Felony; ORS 164.055)

Count 2: UNLAWFUL POSSESSION OF METHAMPHETAMINE (A Misdemeanor; ORS 475.894 (2)(b))

committed as follows:

COUNT 1

The defendant, on or between September 17, 2024 and September 18, 2024, in Washington County, Oregon, did unlawfully commit theft of merchandise, of the value of one thousand dollars or more, the property of Target.

COUNT 2

As part of the same act and transaction and part of crimes that are of the same or similar character and a common scheme and plan as Count 1: The defendant, on or about September 18, 2024, in Washington County, Oregon, did unlawfully and knowingly possess two grams or more of a mixture or substance containing a detectable amount of methamphetamine.

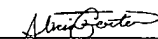
contrary to the statutes and against the peace and dignity of the State of Oregon.

It is hereby affirmatively declared for the record, upon appearance of the defendant for arraignment, and before the Court asks how the defendant pleads to the charges, that the State intends that any misdemeanor offenses charged herein each proceed as a misdemeanor.

Dated: September 19, 2024

KEVIN BARTON, District Attorney

By:



Alicia Gerten, OSB # 204744

Deputy District Attorney

ECR Eligible

DA #437558

HBS 50-2413459

DOB 02/15/1988

FPC #: JWS224065036

Appear – In Custody

☐ Requesting Preventative Detention

24CR49043

IF

Information

18413969



CIRCUIT COURT, STATE OF OREGON, WASHINGTON COUNTY

STATE OF OREGON v. PENN, ASHLE ANTOINETTE Defendant

I, **DEFENDANT ABOVE NAMED, ON OATH SAY AND AGREE:**To personally appear at all of my court dates in this case
unless otherwise allowed by the Court.

I agree to appear on: 09/20/2024 00:00 PM

Total Charges for Case #: 2

164.055 THEFT 1ST DEG - 1 FEL x 1

475.894 UNL POSSESS METHAMPHETAMINE - 1 MISD x 1

9% of: 250 : \$: 250 : paid in cash at: 0900 , am/pm this date: 9-20-24 : set by [] Schedule, [] Warrant, [] Judge**WASHINGTON COUNTY CIRCUIT (HILLSBORO) 145 N.E. 2ND AVE., HILLSBORO, OR. 97124 503-846-6362**

Check daily calendar for courtroom assignment, and to appear thereafter as ordered by the Court until discharged.

To submit to all orders and processes of the Court.

Not to leave Oregon without permission of the Court (for permission, contact the Court Release Office).

4(a). If initialed, I understand that I have court permission (subject to my waiver of extradition rights below) to reside in Washington State at the address on this release form. _____ (initials of Release Officer)

To keep the Court, my Attorney, and my Responsible Person advised of my correct address at all times and to maintain adequate contact with my attorney such that the attorney can contact me on short notice at all times.

6) To obey all laws and notify the Court immediately if arrested or cited for any offense (other than traffic violations).

7. You are not to have any direct or indirect contact with the victim and/or co-defendant(s) unless specifically authorized by the Court.

"Victim" means the person(s) who have suffered financial, social, psychological, or physical harm as a result of the alleged crime(s).

8. To also obey the following condition(s): Initial: _____

You are not to possess or consume any alcohol.

You are not to possess or consume any illegal drugs.

You are not to possess any dangerous weapons, firearms, knives, etc.

You are not to have any contact with the victim's family, co-defendant's or witness's.

You are not to go within 150 yards of the victim's residence, work, vehicle or person. Victim: TARGET

~~NO CONTACT WITH CO-DEFENDANT BARRY WASHINGTON.~~**I UNDERSTAND FULLY THAT:**

1. A willful failure to appear in Court is a separate and serious crime punishable by fine, jail or prison sentence.
2. A willful failure to appear in Court results in a waiver of my speedy trial rights on all charging instruments, including subsequently filed indictments, arising from the criminal episode which is the subject of this release agreement.
3. A willful failure to appear in Court may negate my speedy trial rights if I leave the State even if the State fails to extradite me.
4. That the Court may modify or revoke this agreement and my release and may add conditions or require security to be posted.
5. That any breach of this agreement may be punished as contempt of court and result in re-arrest.
6. I must provide an address, phone number, email or any combination of, so the court can send a reminder notice. The contact avenues can include a family, friend, or shelter's address or phone to number.
7. If posted, the state will retain a 15% service fee from the account posted, not less than \$5.00 for expenses. This applies when the 10% security amount is posted. If the full security amount is posted, no 15% service fee will be retained.
8. All security amounts will be receipted in the name of the person posting security and will be applied to any fines, fees, restitution or court-ordered financial obligation in this case or any other case the defendant or surety owes on, in this Court or any other Circuit Court in Oregon. Any refundable amount may be returned to the person who posted at the disposition of this case.
9. If I do not comply with the conditions of the release agreement, including but not limited to failure to appear in Court, the Court shall enter an order delcaring the entire security amount to be forfeited. The order or forfeiture will be mailed to you at the address you have provided in your release agreement. It is your responsibility to advise the court of any changes in address. Notifying the Post Office or the Sheriff's Office is inadequate. Notice shall be in writing to Washington County Court Pretrial Release Office, 215 SW Adams, Hillsboro, OR. 97123

24CR49043

AGSR

Agreement - Security Release

18435914

**Subscribed and sworn to before me and receipted this 20th of September, 2024**Printed Name of Officer: B. DannerSignature of Officer: [Signature]Title: DeputyAgency: WCSO

Language: _____

Interpreter: _____

CIRCUIT COURT, STATE OF OREGON, WASHINGTON COUNTY

STATE OF OREGON v. PENN, ASHLE ANTOINETTE Defendant

I UNDERSTAND THAT IF I AM FOUND OUTSIDE THIS STATE IN VIOLATION OF THIS AGREEMENT, I HEREBY WAIVE MY RIGHT
TO CONTEST EXTRADITION BACK TO THE STATE OF OREGON.
I HAVE READ, FULLY UNDERSTAND AND VOLUNTARILY SIGNED THIS AGREEMENT.

Date: 9/20/2024, Signature of Defendant: X

Height: 504, Weight: 160, Hair: BLK, Eyes: BRO, Birth Date: 02/15/1988

Address: 2850 SW CEDAR HILLS BLVD # 234 BEAVERTON, OR 97005

Mailing Address if different:

Phone: (424) 242-3374

Court Email:

Family/Friend/Shelter Phone:

Family/Friend/Shelter Address:

Family/Friend Email:

Verified Correct Copy of Original 9/20/2024

Subscribed and sworn to before me and receipted this 20th of September, 2024Printed Name of Officer: B. DammSignature of Officer: [Signature]Title: DetAgency: WCSO

Language: _____

Interpreter: _____

Washington County Jail - OR 9/20/2024 09:00 AM

Resident Transaction Receipt

Transaction 960748

Receipt:

Resident

Name PENN, ASHLE ANTOINETTE

JID Booking ID

7822501 2408288

Pod: Cell:

POD 4 013

Transaction

Date/Time	Accounting Event	Amount
9/20/2024 8:59 AM	Pay Bail Check	\$250.00

Description

24CR48043

Accounts

Account	Current Balance
Trust	\$5.52

Signature

Date

9-20-24

WASHINGTON COUNTY
JAIL DIVISION/INMATE TRUST ACC

55743

Date: 09/20/2024
Amount: 250.00
Payee: WASHINGTON COUNTY CIRCUIT COURT
Memo: 24CR49043
Inmate ID: 7822501
Inmate Name: PENN, ASHLE

OFFICIAL RECEIPT
OREGON JUDICIAL DEPARTMENT
Payments Accepted Online
www.courts.oregon.gov Select *OJD Courts E-Pay*

Payor
PENN, ASHLE ANTOINETTE
710 NW AUTUMN CREEK WAY APT L304
BEAVERTON , OR 97006

Receipt No.
2024-631407
Transaction Date
09/26/2024

Description		Amount Paid
On Behalf Of PENN, ASHLE ANTOINETTE		
24CR49043		
State of Oregon vs ASHLE ANTOINETTE PENN		
Bond Account		
Security Release		250.00
SUBTOTAL		250.00
PAYMENT TOTAL		250.00
Check (Ref #55743) Tendered		250.00
Total Tendered		250.00
Change		0.00
09/26/2024	Cashier	Audit
03:23 PM	Station WSHW334	282108423

OFFICIAL RECEIPT

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR WASHINGTON COUNTY

24CR49043
OR
Order
18436200



STATE OF OREGON

ORDER

Case No: 24CR49043

DA: Erwin

Defense Attorney: Sidman Thayne

Interpreter: _____ ☐ Language: _____

FTR Courtroom: 105C

Proceeding: Prelim

Plaintiff

vs.

Ashle Antoinette Penn
Defendant

Truly named. ☐

Proceeded as named.

☐ Arraigned ☐ Rights Given ☐ Waived ☒ Not Guilty Plea ☐ Denial ☐ In Custody

Attorney: ☐ Appointed ☐ May Request ☐ Retained ☐ To Be Retained ☐ Waived

OSB#: _____ Name: _____ ☐ DUII Advisory Counsel ☐ Deferred Sentencing Counsel

If arraigned on a Domestic Violence or Sex Crime you are prohibited from contacting the named victim even while in custody

☐ Reset to _____ at _____, at Request of: _____

by: Telephone / Letter / Motion / Attorney

☐ Waived speedy constitutional trial/60-day rule rights for this continuance or waiver of 14-day rule for probation violation hearing.

☐ Guilty / No Contest Plea with Sentencing on _____ at _____

☐ Deferred Sentencing ☐ Declined ☐ PSI Ordered: DOB _____ ☐ Atty to be present

☐ Allowed ☐ Ineligible Counts/Charges: _____

☐ Waived Extradition ☐ Requested Governors Warrant Def. Contact Info.: _____

Next *Personal* Appearance(s): ☐ Preliminary Hearing ☐ Case Management Hearing on _____ at _____

☐ Final Resolution Conference ☒ 10-10-24 on COP at 1pm
(ccc)

☐ Case Assignment ☐ _____ on _____ at _____

☐ Trial ☐ Docketed on _____ at _____

Preliminary Hearing: ☒ Prelim Waived ** By: Δ

☐ Probable cause found on Ct(s): _____ ☐ Probable cause not found on Ct(s): _____

☐ Information Dismissed ☐ Indicted ** ☐ Waived Indictment ** ** with Next Appearance Date: _____ at _____

☐ Failed To Appear for: _____ ☐ Security Forfeited: Judgment To Be Entered ☐ Security Not Forfeited At This Time

☐ Revoke Release ☐ Bench Warrant Ordered ☐ Arrest Warrant Ordered Security Amount: \$ _____

☐ Judgment of Acquittal Ct(s): _____ ☐ Finding of Not Guilty Ct(s): _____

☐ Judgment of Dismissal Ct(s): _____ ☐ Finding of Guilty Ct(s): _____

☐ Other: _____

Date: 9-26-24

Judge: C. Colburn
COLBURN

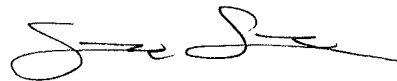
IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,	)	Case No. 24CR49043
	)	
Plaintiff,	)	MOTION TO WITHDRAW
	)	AS ATTORNEY OF RECORD
vs.	)	
	)	
ASHLE' PENN,	)	
	)	
Defendant.	)	

COMES NOW Sunny Sidman of HARRIS VELÁZQUEZ GIBBENS and moves the court for an order allowing her withdrawal as attorney of record for the Defendant. This motion is based upon the records and files herein, and the declaration attached hereto.

DATED this 1st day of October, 2024.

HARRIS ♦ VELÁZQUEZ ♦ GIBBENS



Sunny Sidman; OSB #234104
Attorney for Defendant

1 – MOTION TO WITHDRAW AS ATTORNEY OF RECORD

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CERTIFICATE OF SERVICE

I certify that I served the foregoing **Motion to Withdraw as Attorney of Record,**
Declaration and Order on the following parties:

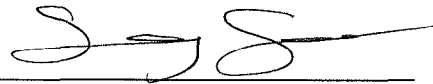
Washington County District Attorney's Office
DAFileandServe@washingtoncountyor.gov

by the following indicated method or methods on the date indicated below:

- ☐ By **Mailing** a full, true and correct copy thereof in a sealed, first class postage-prepaid envelope, addressed as shown above to the last known address, and deposited with the United States Mail at Hillsboro, Oregon;
- ☐ By **Hand-delivering** a full, true and correct copy thereof to the address as shown above to the last known address;
- ☐ By **Faxing** a full, true and correct copy thereof to the fax number above, which is the last known fax number; Confirmation of transmission provided upon request;
- ☒ By **Emailing** to the email listed above, which is the last known email address;

DATED this 1st day of October, 2024.

HARRIS ♦ VELÁZQUEZ ♦ GIBBENS



Sunny Sidman; OSB #234104
Attorney for Defendant

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,) Case No. 24CR49043
Plaintiff,)
vs.) DECLARATION IN SUPPORT OF MOTION
ASHLE' PENN,) TO WITHDRAW AS ATTORNEY OF
Defendant.) RECORD

STATE OF OREGON)
County of Washington) ss.

I, Sunny Sidman, depose and say that the following is true:

1. I am currently the attorney of record in this matter.

2. There has been a breakdown in the attorney-client relationship that counsel believes is irreparable.

3. Additionally, Ms. Penn has demanded that I act in ways that would put me in violation of Oregon Rules of Professional Conduct.

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1 – DECLARATION IN SUPPORT OF MOTION TO WITHDRAW AS ATTORNEY OF RECORD

4. As such, defense counsel respectfully requests to be withdrawn as attorney of record in this matter.

I hereby declare that the above statement is true to the best of my knowledge and belief, and that I understand it is made for use as evidence in court and is subject to penalty for perjury.

DATED this 25th day of October, 2024

HARRIS ♦ VELÁZQUEZ ♦ GIBBENS


Sunny Sidman; OSB #234104
Attorney for Defendant

STATE OF OREGON

ORDER

Case No: 24CR49043

Plaintiff

DA: Gerten

Defense Attorney: Sidman

vs.

Interpreter: _____ ☐ Language

Ashle Antoinette Penn

Defendant

FTR Courtroom: IDSC

Truly named ☐

Proceeded as named.

Proceeding: COP / W/D

☐ Arraigned ☐ Rights Given ☐ Waived ☐ Not Guilty Plea ☐ Denial ☐ In Custody

Attorney: ☐ Appointed ☐ May Request ☐ Retained ☐ To Be Retained ☐ Waived

OSB#: _____ Name: _____ ☐ DUI Advisory Counsel ☐ Deferred Sentencing Counsel

If arraigned on a Domestic Violence or Sex Crime you are prohibited from contacting the named victim even while in custody

☐ Reset to _____ at _____, at Request of: _____

by: Telephone / Letter / Motion / Attorney

☐ Waived speedy constitutional trial/60-day rule rights for this continuance or waiver of 14-day rule for probation violation hearing.

☐ Guilty / No Contest Plea with Sentencing on _____ at _____

☐ Deferred Sentencing ☐ Declined ☐ PSI Ordered: DOB _____ ☐ Atty to be present

☐ Allowed ☐ Ineligible Counts/Charges: _____

☐ Waived Extradition ☐ Requested Governors Warrant Def. Contact Info.: _____

Next Personal Appearance(s): ☐ Preliminary Hearing ☐ Case Management Hearing on _____ at _____

☐ Final Resolution Conference ☒ Trial on 11/12/24 (Bmt) at 1:30pm

☐ Case Assignment ☐ Readiness on _____ at _____

☐ Trial ☐ Docketed at _____

Preliminary Hearing: ☐ Prelim Waived ** By: _____

☐ Probable cause found on Ct(s): _____ ☐ Probable cause not found on Ct(s): _____

☐ Information Dismissed ☐ Indicted ** ☐ Waived Indictment ** ** with Next Appearance Date: _____ at _____

☐ Failed To Appear for: _____ ☐ Security Forfeited: Judgment To Be Entered ☐ Security Not Forfeited At This Time

☐ Revoke Release ☐ Bench Warrant Ordered ☐ Arrest Warrant Ordered Security Amount: \$ _____

☐ Judgment of Acquittal Ct(s): _____ ☐ Finding of Not Guilty Ct(s): _____

☐ Judgment of Dismissal Ct(s): _____ ☐ Finding of Guilty Ct(s): _____

☐ Other: _____

CLG appointed to 24CR27775

24CR49043
OR
Order
18478357



Date: 10/10/24

Judge: C. Colburn

Colburn

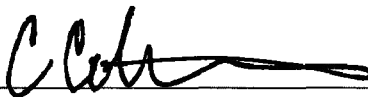
IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,	)	Case No. 24CR49043
	)	
Plaintiff,	)	ORDER TO WITHDRAW AS
	)	ATTORNEY OF RECORD
vs.	)	
	)	
ASHLE' PENN,	)	
	)	
Defendant.	)	

BASED UPON the motion and declaration of attorney Sunny Sidman, to withdraw as attorney of record, now therefore,

IT IS HEREBY ORDERED that Sunny Sidman and HARRIS VELÁZQUEZ GIBBENS be allowed to resign as attorney of record in the above-referenced action.

10/10/2024 3:54:29 PM



Circuit Court Judge Pro Tem,
Chris C. Colburn

1 – ORDER TO WITHDRAW AS ATTORNEY OF RECORD

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124

Case No: 24CR49043

State of Oregon

vs

ASHLE ANTOINETTE PENN

Order Re:

New Court-Appointed Counsel

Case Type: Offense Felony

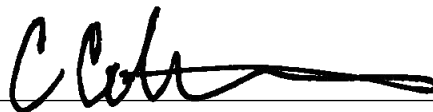
Applicant: ASHLE ANTOINETTE PENN

Defendant's court appointed attorney's motion to withdrawal is granted and new counsel is appointed.

The court orders as follows:

- ☒ **Attorney:** CLG is appointed as counsel for the defendant.
- ☐ Defendant consents to transfer records and discovery pertaining to this case to new counsel.
 - ☐ Consent to transfer is on record.
 - ☒ Consent to transfer is **not** on record.
 - ☐ Other:
- ☒ Attorney contract or fee disputes shall be referred to the Presiding Judge.

10/10/2024 3:54:52 PM



**Circuit Court Judge Pro Tem,
Chris C. Colburn**

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

October 15, 2024

Sunny Sidman
Harris Velazquez Gibbens
165 SE 26th Ave
Hillsboro OR 97123

Re: State of Oregon vs ASHLE ANTOINETTE PENN
Case #: 24CR49043 Offense Felony

NOTICE OF SIGNED DOCUMENT

A case event that includes a signed document has been added to the Register of Actions for this case.

For further information, log into the Oregon eCourt Case Information (OECI) system or go to a public access kiosk at the courthouse.

Note: Documents may not be attached to events depending on local court business processes.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

THE STATE OF OREGON,

Plaintiff,

vs.

ASHLE' ANTOINETTE PENN,

Defendant.

Case No. 24CR49043

DEFENDANT'S REQUEST FOR
DISCOVERY, PRESERVATION OF
EVIDENCE, SPEEDY TRIAL,
CHALLENGE TO CRIMINAL HISTORY,
AND ORS 475.235(5) NOTICE

I. DEMAND FOR DISCOVERY – COURT APPOINTED

Defendant by and through counsel, demands that the district attorney produce for inspection and/or copying by the defendant all the information and material demanded below which is in the State's or its agent's possession or control, or which may come into the State's or its agent's possession or control prior to the trial or other proceeding in this case in order to assist the defendant in adequately preparing the defense in the above-captioned case.

1. The names and addresses of persons whom you intend to call as witnesses at any stage of the trial, together with their relevant written or recorded statements or memoranda of any oral statements of such persons, including police officers'

1 notebook entries. Defendant specifically requests all police reports regarding this
2 matter that were not previously supplied to defense counsel.

3 a. The defendant specifically requests a complete list of witnesses whom the
4 state “intends” to call at trial. This includes but is not limited to witnesses
5 whom the state “may” or is likely to call. This list should be disclosed as
6 soon as practicable following the filing of an indictment or information.
7 Refusal to provide this information will result in the defendant moving for
8 exclusion of any applicable witnesses.

9 b. “Written or recorded statements or memoranda of any oral statements”
10 includes statements made to the Washington County District Attorney’s
11 Victim’s Assistance Office.

- 12 2. Any written or recorded statements or memoranda of any oral statements made by
13 the defendant, or made by a co-defendant if the trial is to be a joint one.
- 14 3. Any reports or statements of experts, made in connection with the particular case,
15 including results of physical or mental examinations and of scientific tests,
16 experiments, or comparisons which the State intends to offer in evidence at the
17 trial.
- 18 4. Any books, papers, documents, photographs, or tangible objects: (a) which the
19 State intends to offer in evidence at the trial; or (b) which were obtained from or
20 belong to the defendant.

- 1 5. The occurrence of a search or seizure and any relevant material or information
2 obtained thereby, the circumstances of the search and seizure, and the
3 circumstances of the acquisition of any specified statements from the defendant.
- 4 6. Any prior convictions of the defendant which the State plans to introduce, should
5 the defendant testify, and any “prior bad acts” of the defendant that the prosecutor
6 intends to use at trial;
- 7 7. That the prosecutor make a specific and detailed effort to determine whether any
8 government agency has any information that must be revealed pursuant to Brady
9 v. Maryland, 373 US 83 (1963), including but not limited to, the following:
- 10 a. Any evidence, material, or information that would tend to impeach the
11 credibility of any person whom the government intends to call as a witness
12 or any individual upon whom the prosecution has relied on in the
13 investigation and prosecution of its case. See Kyles v. Whitley, 115 S.Ct.
14 155 (1995) (the Brady obligation to disclose impeachment evidence
15 extends to non-witnesses as well as witnesses).
- 16 b. Any record of the witness’s arrest or conviction maintained and prepared
17 by the FBI, DEA, other federal law enforcement agencies, the Oregon
18 State Police, the State Bureau of Investigation, or other national, state or
19 local law enforcement agencies, and the State shall make a good faith
20 effort to determine if such convictions have occurred. To show a good

1 faith effort was made, the defendant requests a printout indicating that a
2 CRISS/PROMIS/LEDS search was conducted.

3 c. Any facts or allegations concerning criminal or other misconduct of the
4 witness that is not reflected on his criminal record, including information
5 in prior police reports, and any material information found in his or her
6 probation file, or any pending criminal charge or investigation against the
7 witness, or any business entity with which he is connected. See United
8 States v. Strifler, 851 F2d 1197 (9th Cir. 1988), cert. denied, 489 US 1032
9 (1989).

10 d. Any information relating to the witness's mental or physical history that
11 tends to impair or reflect adversely on the reliability of the witness,
12 including but not limited to, any information that would tend to affect the
13 witness's motive to testify or ability to perceive, recall, or understand
14 events.

15 e. Any statements made, written or recorded, by or of the witnesses referred
16 or relating to any of the above-mentioned matters.

17 f. Any information that tends to contradict the testimony that the prosecutor
18 anticipates will be given by any of its witnesses. See McDowell v. Dixon,
19 858 F2d 945 (4th Cir. 1988), cert. Denied, 489 US 1033 (1989) (state
20 witness misidentified the defendant before trial and it should have been
21 revealed).

- 1 g. Any information showing that the testimony was motivated in any degree
2 by a personal animosity or feelings of revenge toward the defendant. E.g.,
3 State v. Brown, 552 SW 2d 383 (Tenn. 1977).
- 4 h. Any and all statements, testimony, memoranda, interviews, documents, or
5 summaries relating to this case, or any portion thereof, by any person, that
6 contradict, in whole or in part, any statement (by that person or any other
7 person) that the prosecutor intends to use or rely on in any manner in
8 connection with the trial of this cause. Kyles v. Whitley, 115 SCt 155,
9 131 L Ed2 490 (1995).
- 10 i. All evidence that tends to minimize or negate the probative effect of the
11 prosecutor's evidence of defendant's participation in the allegation set
12 forth in the indictment. See United States ex rel. Smith v. Fairman, 769 F
13 2d 386 (7th Cir. 1985) (report revealed gun allegedly used by defendant
14 was inoperable).
- 15 j. Any evidence, statement, or information in the possession of the
16 prosecutor describing or relating to the conduct of the defendant that in
17 any way refutes or is inconsistent with his participation in the alleged
18 offenses.
- 19 k. Any written, recorded, or oral statements or comments made by witnesses
20 or others to any person, including government agents and the grand jury,
21 that are favorable to the defendant;

- 1 l. Any written, recorded, or oral statements or comments of persons
2 interviewed by the government in this matter who are not expected to be
3 witnesses for the government at the trial;
- 4 m. Any results, reports, and opinions obtained from examinations, tests, and
5 experiments on physical items and evidence that indicate a lack of
6 criminal involvement or otherwise favorable to the defendant ;
- 7 n. Any evidence, statement, or information that tends to contradict the
8 testimony that the government anticipates will be given by any one of its
9 witnesses. *United States v. Foster*, 874 F 2d 491 (8th Cir. 1988)
10 (prosecutor failed to correct false testimony which was a violation of due
11 process); *Brown v. Wainwright*, 785 F 2d 1457 (11th Cir. 1986);
- 12 o. Any promises, agreements, or deals offered by the government concerning
13 rewards, special treatment or immunity to witnesses or others involved in
14 this case. *Bagley v. United States*, 473 US 667 (1985).
- 15 p. Any evidence that any government witness has or has sought a financial
16 inducement to testify or a promise of leniency in witness's own criminal
17 dealings. *Bagley v. Lumpkin*, 798 F2d 1297 (9th Cir. 1986), cert. denied,
18 434 US 939 (1977); *Moynahan v. Manson*, 419 F Supp 1139 (D. Conn
19 1975), aff'd, 559 F2d 1204 (2d Cir. 1977); *Hughes v. Bowers*, 711 F Supp
20 11574 (N.D. Ga. 1989), aff'd, 896 F2d 559 (11th Cir.) 1990).

- 1 q. Any written or oral statement or memorandum of any oral statement of
2 any witness requesting and/or receiving any sort of benefit from the
3 Washington County District Attorney's Victim's Assistance Office or
4 State Department of Justice Crime Victim's Compensation Fund. Benefits
5 include, but are not limited to: unemployment benefits, priority housing
6 consideration, financial assistance, and request for immigration assistance
7 (including eligibility for work permits, lawful permanent residency, and U
8 and T visas).
- 9 r. Any information about any eyewitness for whom the district attorney has a
10 name and/or address but whom the district attorney does not intend to call.
11 Kyles v. Whitley, 115 SCt 155, 131 L Ed2 490 (1995); United States v.
12 Cadet, 727 F2d 1453 (9th Cir. 1984).
- 13 s. Any statement or testimony by an expert which would tend to corroborate
14 the defendant's theory of defense. People v. Johnson, 38 Cal App 3d 228,
15 113 Cal Rptr 303 (1974).
- 16 t. Any other evidence favorable to the defendant that is material to the
17 defendant's guilt or punishment.
- 18 u. Any information which would tend to lessen the impact of the Sentencing
19 Guidelines on the defendant in the event of a conviction, including but not
20 limited to the role in the offense, lesser quantities, ignorance of the true
21 scope of any conspiracy, and any evidence of acceptance of responsibility.

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Dated October 15, 2024

/s/ *Anna Lasher*

Anna Lasher OSB # 153980

Attorney for Defendant

Points & Authorities:

ORS 135.805 – ORS 135.873

Oregon Constitution, Article I, sections 9 and 11

United States Constitution, Amendments V, VI, and XIV

United States v. Price, 566 F.3d 900 (9th Cir. Or. 2009)

State ex rel Dooley v. Connall, 257 Or 94 (1979)

Page 8 – Defendant’s Discovery Demand

CORNERSTONE LAW GROUP
1328 SW Baseline St., Suite 104
Hillsboro, OR 97123
(503) 648-7383
Fax (503) 648-0907
office@cornerstone-lawgroup.com

Brady v. Maryland, 373 US 83 (1963)
Kyles v. Whitley, 514 US 419 (1995)
United States v. Strifler, 851 F2d 1197 (9th Cir. 1988), cert. denied, 489 US 1032 (1989).
McDowell v. Dixon, 858 F2d 945 (4th Cir. 1988), cert. Denied, 489 US 1033 (1989)
State v. Brown, 552 SW 2d 383 (Tenn. 1977).
United States ex rel. Smith v. Fairman, 769 F 2d 386 (7th Cir. 1985)
United States v. Foster, 874 F 2d 491 (8th Cir. 1988)
Brown v. Wainwright, 785 F 2d 1457 (11th Cir. 1986)
Bagley v. United States, 473 US 667 (1985).
Bagley v. Lumpkin, 798 F2d 1297 (9th Cir. 1986), cert. denied, 434 US 939 (1977)
Moynahan v. Manson, 419 F Supp 1139 (D. Conn 1975), aff'd, 559 F2d 1204 (2d Cir. 1977);
Hughes v. Bowers, 711 F Supp 11574 (N.D. Ga. 1989), aff'd, 896 F2d 559 (11th Cir.) 1990).
United States v. Cadet, 727 F2d 1453 (9th Cir. 1984).
People v. Johnson, 38 Cal App 3d 228, 113 Cal Rptr 303 (1974).

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

THE STATE OF OREGON,

Plaintiff,

vs.

ASHLE' ANTOINETTE PENN,

Defendant.

Case No. 24CR49043

CERTIFICATE OF SERVICE

I hereby certify that I served the foregoing REQUEST FOR DISCOVERY in case No.
24CR49043, on the following:

Washington County D.A.'s Office
Justice Services Building
150 North First Avenue
Hillsboro, Oregon 97124

By emailing a true copy thereof to dafileandserve@co.washington.or.us certified by me as such
on October 15, 2024.

Dated October 15, 2024.

/s/Anna Lasher
Anna Lasher, OSB #153980
Attorney for Defendant
anna@cornerstone-lawgroup.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

Case No: 24CR49043 TR

State of Oregon
vs
ASHLE ANTOINETTE PENN

Scheduling Order

Defendant: ☐ In Custody ☐ Out of Custody

Case Type: Offense Felony

The above-entitled matter came before the court for a Hearing on 11/12/2024. The following parties appeared:

Attorneys/Parties:		Present		Remote
State/Plaintiff:		☐		☐
Defense Atty:	Anna Niederkorn Lasher	☒		☐
Defendant:	ASHLE ANTOINETTE PENN	☐		☐
Interpreter:		☐		☐

The court and counsel agreed on the following schedule for this case:

Hearing: _____	Date/Time/Estimated Duration: _____
Motion / Omnibus	Date/Time/Estimated Duration: DOCKETED
Settlement Conference	Date/Time/Estimated Duration: _____
Trial Readiness Hearing Set 3 Weeks prior to trial: Confirm procedural timelines met.	2-24-25 @ 1:30pm Date/Time/Estimated Duration: _____
Trial: ☐ Court ☐ 6-Person ☐ 12-Person	3-5-25 @ 9:00am Waived speedy constitutional trial/60-day rule rights for this continuance ☐ Yes ☐ No
If Court Trial, is Jury Waiver Complete ☐ Yes ☐ No	Date/Time/Estimated Duration: 3-days Total
Additional Information: _____ _____	

Counsel will be expected to adhere to the dates provided above. Any deviation in the timelines provided will require a Motion and Order for the courts' consideration.

☐ Defendant Failed to Appear: Bench Warrant Issued ☐ Revoke Release ☐ Security Amount: _____
Previously posted security shall be forfeited per ORS 135.280(3).

IT IS SO ORDERED.

11/12/24
Date

24CR49043
OR
Order
18582346



Honorable Brandon Thompson, Judicial Officer

1 IN THE CIRCUIT COURT OF THE STATE OF OREGON
2 FOR THE COUNTY OF WASHINGTON
3

4 THE STATE OF OREGON,

Case No. 24CR49043

5 Plaintiff,

6 vs.

DEFENDANT’S MOTION TO
WITHDRAW WAIVER OF
PRELIMINARY HEARING

7 ASHLE PENN,

8 Defendant.
9

10 COMES NOW, Defendant, by and through attorney, Anna Lasher, and MOVES the
11 Court to allow Defendant to withdraw to her prior waiver of her right to a preliminary hearing,
12 and to hold a preliminary hearing within 30 days,

13 On 9/26/24, and while represented by counsel who subsequently withdrew from
14 representing Defendant, the Court accepted a waiver of Defendant’s right to a preliminary
15 hearing. Defendant’s waiver was not voluntarily made with full understanding and she wishes to
16 withdraw her waiver at this time.

17 The right to a preliminary hearing is a statutory right set forth in ORS 135.070(2). The
18 statute is silent as to the ability to waive the right to a preliminary hearing, as well as the effect of
19 waiver, and the ability to re-claim the right. Without a clear statement of law to the contrary, it

1 ought to be presumed that the rights of a criminal defendant are waivable and enforceable at will.
2 This presumption is based on the notion of due process afforded to the criminally accused in both
3 the Oregon Constitution and the U.S. Constitution. Article I, Section 11 of the Oregon
4 Constitution guarantees criminally accused the right to “to demand the nature and cause of the
5 accusation against” them. The Firth Amendment of the U.S. Constitution, as applied to the state
6 through the Fourteenth Amendment affords the right to not be held to answer for a crime “unless
7 on a presentment or indictment of a grand jury.” It further provides the right to due process under
8 the law.

9 Pursuant to Defendant’s withdrawal of her waiver of right to a preliminary hearing, she
10 demands a preliminary hearing be held within 30 days as provided under ORS 135.070(2).
11

12 Dated: December 24, 2024

13 s/Anna Lasher

14 Anna N. Lasher, OSB #153980

15 Attorney for Defendant
16
17
18
19
20
21
22
23

1 **CERTIFICATE OF SERVICE**

2 I hereby certify that I served the foregoing MOTION in Case No. 24CR49043, on the
3 following:

4 Washington County D.A.'s Office
5 Justice Services Building
6 150 North First Avenue
7 Hillsboro, Oregon 97124
8 dafileandserve@co.washington.or.us
9

10
11 by emailing true copies thereof to the above specified email address(es).

Dated: December 24, 2024

s/Anna Lasher

Anna N. Lasher, OSB # 153980
Attorney for Defendant

IN THE CIRCUIT COURT OF THE STATE OF OREGON FOR WASHINGTON COUNTY

STATE OF OREGON,

Plaintiff,

No. 24CR49043

vs.

INDICTMENT - Secret

ASHLE ANTOINETTE **PENN**,

Defendant.

The above named defendant is accused by the Grand Jury of Washington County by this indictment of the crime(s) of

Count 1: THEFT IN THE FIRST DEGREE (FSG= 3; C Felony; ORS 164.055)

Count 2: UNLAWFUL POSSESSION OF METHAMPHETAMINE (A Misdemeanor; ORS 475.894 (2)(b))

committed as follows:

COUNT 1

The defendant, on or between June 2, 2024 and September 19, 2024, in Washington County, Oregon, did unlawfully commit theft of merchandise, of the value of one thousand dollars or more, the property of Target.

//

//

//

//

//

COUNT 2

As a separate act and transaction but as part of crimes that are of the same or similar character and a common scheme and plan as Count 1: The defendant, on or about September 18, 2024, in Washington County, Oregon, did unlawfully and knowingly possess two grams or more of a mixture or substance containing a detectable amount of methamphetamine.

contrary to the statutes and against the peace and dignity of the State of Oregon

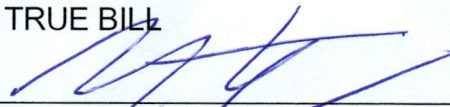
It is hereby affirmatively declared for the record, upon appearance of the defendant for arraignment, and before the Court asks how the defendant pleads to the charges, that the State intends that any misdemeanor offenses charged herein each proceed as a misdemeanor.

Dated: January 14, 2025

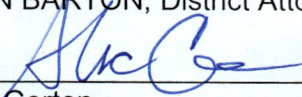
Witnesses subpoenaed, examined and appeared in person unless otherwise indicated before the Grand Jury for the State of Oregon:

David Ramin
Kinley Baker

A TRUE BILL


Foreperson of the Grand Jury

KEVIN BARTON, District Attorney


Alicia Gerten
Deputy District Attorney
Oregon State Bar # 204744

DA # 437558
HBS 50-2413459
DOB 02/15/ 1988
FPC #: JVAS224065036

☐ Requesting Preventative Detention

Grand Jury Proceeding Dates:
January 14, 2025

Verified Correct Copy of Original 2/24/2025.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

Case No: 24CR49043

State of Oregon
vs
Ashle' Antoinette Penn

Scheduling Order

Defendant: ☐ In Custody ☐ Out of Custody

Case Type: Offense Felony

The above-entitled matter came before the court for a Hearing on 2/24/2025. The following parties appeared:

Attorneys/Parties:		Present		Remote
State/Plaintiff:	Phil Wal	☐		☐
Defense Atty:	Anna Niederkorn Lasher	☒		☐
Defendant:	Ashle' Antoinette Penn	☐		☐
Interpreter:		☐		☐

The court and counsel agreed on the following schedule for this case:

Hearing:	
	Date/Time/Estimated Duration:
Motion/ Omnibus	4-28-24 @ 2:30 pm 3 HRS.
	Date/Time/Estimated Duration:
Settlement Conference	
	Date/Time/Estimated Duration:
Trial Readiness Hearing Set 3 Weeks prior to trial: Confirm procedural timelines met.	6-23-25 @ 1:30 pm
	Date/Time/Estimated Duration:
Trial: ☐ Court ☐ 6-Person ☒ 12-Person	7-17-25 @ 9:00 am
	Waived speedy constitutional trial/60-day rule rights for this continuance ☐ Yes ☐ No
If Court Trial, is Jury Waiver Complete ☐ Yes ☐ No	Date/Time/Estimated Duration: 2 days
Additional Information: Arraigned on Indictment - H G entered.	

Counsel will be expected to adhere to the dates provided above. Any deviation in the timelines provided will require a Motion and Order for the courts' consideration.

☐ Defendant Failed to Appear: Bench Warrant Issued ☐ Revoke Release ☐ Security Amount: \$
Previously posted security shall be forfeited per ORS 135.280(3).

IT IS SO ORDERED.

02/24/2025
Date

DOCKETED

Honorable Brandon Thompson

24CR49043
OR
Order
18884944



IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

THE STATE OF OREGON,

Plaintiff,

vs.

ASHLE' ANTOINETTE PENN,

Defendant.

Case No. 24CR49043

DEFENDANT'S MOTION TO DISMISS
PURSUANT TO ORS 135.070

COMES NOW, Defendant, by and through attorney, Anna Lasher, and MOVES the Court to dismiss this case pursuant to a violation of Defendant's right to a preliminary hearing within 30 days of such a request as required by ORS 135.070(2). This Motion is, in the opinion of counsel, well founded in law and is supported by the accompanying Declaration of Anna Lasher, incorporated herein by this reference.

ORS 135.070(2) affords a criminal defendant the right to a preliminary hearing. "If a preliminary hearing is requested, it shall be held as soon as practicable but in any event within five judicial days if the defendant is in custody or within 30 days if the defendant is not in custody." The statute is silent as to the ability to waive the right to a preliminary hearing, as well as the effect of waiver, and the ability to re-claim the right. Without a clear statement of law to the contrary, it ought to be presumed that the rights of a criminal defendant are waivable and

1 enforceable at will. This presumption is based on the notion of due process afforded to the
2 criminally accused in both the Oregon Constitution and the U.S. Constitution. Article I, Section
3 11 of the Oregon Constitution guarantees criminally accused the right to “to demand the nature
4 and cause of the accusation against” them. The Firth Amendment of the U.S. Constitution, as
5 applied to the state through the Fourteenth Amendment affords the right to not be held to answer
6 for a crime “unless on a presentment or indictment of a grand jury.” It further provides the right
7 to due process under the law.

8 On October 10, 2024, Defendant expressed her desire to withdraw a prior waiver of her
9 right to a preliminary hearing. No findings of fact or law were necessary to effectuate her
10 withdrawal, as the statute plainly states that “[i]f a preliminary hearing is requested, it shall be
11 held as soon as practicable...” Given that her request was made on the record, the Court was
12 obligated to hold a preliminary hearing by November 10, 2024. That did not happen, nor was an
13 indictment filed until January 14, 2025. These failures represent a violation of Defendant’s most
14 basic right to due process and the appropriate remedy is dismissal without prejudice. This is the
15 standard action the Court takes when the State is not ready to proceed at a preliminary hearing
16 set 30 days after an initial appearance.

17
18 Dated: April 7, 2025

19 s/Anna Lasher

20 Anna N. Lasher, OSB #153980

21 Attorney for Defendant
22
23

1 **CERTIFICATE OF SERVICE**

2 I hereby certify that I served the foregoing MOTION and accompanying DECLARATION in
3 Case No. 24CR49043, on the following:

4 Washington County D.A.'s Office
5 Justice Services Building
6 150 North First Avenue
7 Hillsboro, Oregon 97124
8 dafileandserve@co.washington.or.us
9

10
11 by emailing true copies thereof to the above specified email address(es).

Dated: April 7, 2025

s/Anna Lasher

Anna N. Lasher, OSB # 153980
Attorney for Defendant

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

THE STATE OF OREGON,

Plaintiff,

vs.

ASHLE' ANTOINETTE PENN,

Defendant.

Case No. 24CR49043

DECLARATION OF COUNSEL RE:
MOTION TO DISMISS PURSUANT TO
ORS 135.070

I, Anna N. Lasher, hereby declare, under penalty of perjury, the following to be true to
the best of my knowledge and belief:

1. I am the attorney of record for Defendant in the above-captioned case. My firm was appointed to represent Ms. Penn on 10/10/24. This followed the withdrawal of her prior counsel at a hearing with Judge Colburn on the same date.
2. Prior to my appointment, on 9/26/24, Ms. Penn waived her right to a preliminary hearing.
3. At the 10/10/24 hearing, Ms. Penn expressed her desire to withdraw her prior waiver of her right to a preliminary hearing. This request was made on the record, and in the presence of DDA Alicia Gerten, who is the DDA assigned to this case.

1 4. On 12/24/24, through counsel, Ms. Penn filed a motion to withdraw her waiver of
2 preliminary hearing. Her motion noted that although ORS 135.070 guarantees the
3 right to a preliminary hearing, the statute is grounded in the principles of due process
4 guaranteed by Article I, Section 11 of the Oregon Constitution and the Firth
5 Amendment of the U.S. Constitution.

6 5. No hearing was held, or even scheduled, regarding this motion.

7 6. On 1/14/25, the State filed an indictment in this case.

Dated: April 7, 2025

s/Anna Lasher

Anna N. Lasher, OSB # 153980
Attorney for Defendant

1 IN THE CIRCUIT COURT OF THE STATE OF OREGON

2 FOR THE COUNTY OF WASHINGTON

3
4 THE STATE OF OREGON,

Case No. 24CR49043

5 Plaintiff,

6 vs.

DEFENDANT’S MOTION TO SUPPRESS

7 ASHLE' ANTOINETTE PENN,

Oral Argument Requested
Estimated Duration: 1-2 Hours

8 Defendant.

9
10 **I. MOTION**

11 COMES NOW, Defendant, by and through attorney, Anna Lasher, and MOVES the
12 Court for evidentiary hearing pursuant to ORS 135.037 and UTCR 4.060 and for an order
13 suppressing the seizure of Defendant and all derivative evidence. Defendant challenges the
14 reasonableness of the stop and moves to suppress its fruits, invoking Article I, § 9 of the Oregon
15 Constitution and the Fourth Amendment of the U.S. Constitution as applied to the states through
16 the Fourteenth Amendment. Defendant’s seizure is presumed unreasonable and the state has the
17 burden of demonstrating otherwise. *State v. Miller*, 269 Or 328, 334 (1974) (“a seizure without a
18 warrant is per se unreasonable”). Specifically, Defendant requests the suppression of all primary
19 and derivative evidence, including drugs found in her belongings and her identification, and all

1 statements made by Defendant. This Motion is, in the opinion of counsel, well founded in law
2 and is supported by the following Memorandum of Law and the testimony to be addressed at the
3 hearing on this matter.

4 II. FACTS¹

5 On July 30, 2024, a loss prevention officer, Sarah Fillis, at Target on NW Cornell Rd
6 contacted police regarding a series of thefts committed in June and July 2024 by a single
7 unknown female suspect. Deputy David Rambin of the Washington County Sheriff's Office
8 investigated these thefts on July 31, 2024 by collecting loss prevention reports and surveillance
9 footage from Target. These thefts took place on June 2, June 24, July 24, and July 25. The
10 method in the thefts was not always the same. In some incidents, the unknown suspect engaged
11 in "skip-scanning" using the self-checkout lane, which consists of not scanning every item before
12 paying for smaller items and leaving the store. In other instances, the unknown suspect engaged
13 in return fraud or floor returns by returning items that she had just taken from the sale floor in
14 exchange for store gift cards or cash. The report of July 31 consisted of the following theft
15 values:

- 16 • June 2 - \$38.53
- 17 • June 2 - \$2.49
- 18 • June 24 - \$143.51
- 19 • July 24 - \$197.40

¹ These facts are taken from the police reports and are provided for the convenience of the court and to frame the issues addressed in this brief. Defendant in no way concedes the truth of these facts nor stipulates to these facts.
Page 2 – Defendant's Motion to Suppress

- 1 • July 25 - \$125.43

2 The total amount for these thefts was \$531.73. Because the suspect was not identified at the time,
3 the case remained open.

4 On September 18, 2024, Ms. Fillis reported a theft from the night prior on September 17,
5 in which an unidentified female suspect left the store without paying for selected merchandise
6 valued at \$895.84. Dept. Rambin took this report from Ms. Fillis and collected security footage
7 and still shots. He asked for an identification bulletin to be made from the photos to seek
8 information about the suspect's identity. It is unclear from his reports when he actually reviewed
9 the photo and video evidence from the September 17 theft.

10 Sometime later, but also on September 18, Dept. Rambin learned that Deputy Augusto
11 Orozco had been texted by Ms. Fillis that the unknown suspect from the September 17 incident
12 had returned, this time accompanied by a male. Dept. Rambin's report makes it clear that he
13 believed Ms. Fillis was referring to the same suspect about whom he had just taken a report of
14 theft. Upon arrival at the store, Dept. Rambin was informed that the female suspect was inside
15 selecting items, and that Ms. Fillis had observed the male suspect remove security wires from a
16 vacuum. When the pair exited the store, Dept. Rambin detained the female suspect and identified
17 her as Ashle' Penn. Dept. Orozco detained the male suspect and identified him as Barry
18 Washington. After detaining Ms. Penn and Mr. Washington, Dept. Orozco spoke to Ms. Fillis
19 and learned that Ms. Penn was seen selecting items in the store, going to the customer service
20 desk, returning some of the items in her cart with a receipt and receiving cash, and then leaving
21 the store with an unpaid-for vacuum and other items still in the bottom of her cart. Dept. Orozco

1 told Dept. Rambin that the unpaid-for items were valued at \$192.03 and the amount of cash
2 received for fraudulent returns was \$93.53, for a total of \$285.56. Dept. Rambin believed that
3 Ms. Penn had stolen a total of \$1,181.39 between the thefts on September 17 and 18, and
4 believed he had probable cause to arrest Ms. Penn for Theft in the First Degree. During a search
5 incident to arrest, Deputy Cole Whipple found a small glass vial containing white crystalline
6 powder in Ms. Penn's bags. The powder weighed 2.1 grams, and a field test was positive for
7 methamphetamine. Deputy Christopher Estrada later collected surveillance footage and stills
8 from the September 18 theft. On September 19, 2024, Ms. Penn was charged by District
9 Attorney's Information with Theft in the First Degree, for thefts alleged to have been committed
10 on or between September 17, 2024, and September 18, 2024.

11 On October 1, 2024², Washington County Sheriff's Office intelligence analyst Travis
12 Grower contacted Dept. Rambin and said that he believed that the suspect from June and July
13 2024 thefts was Ashle' Penn. At that point, Dept. Rambin compared the recent booking photo of
14 Ms. Penn to the surveillance photos from June and July and concluded that they were the same
15 person. Since the documented amount of theft from the original July 31, 2024 report was
16 \$531.73, Dept. Rambin believed he had probable cause to arrest Ms. Penn for Theft in the
17 Second Degree. Dept. Rambin attempted to contact Ms. Penn at her last known address but
18 learned that she had moved. Attempts to reach Ms. Penn by phone were unsuccessful, so he
19 wrote and submitted an arrest warrant on December 8, 2024.

² Dept. Rambin's reports are inconsistent and describe this same conversation as happening on both October 1st and October 9th.

1 On December 27, 2024, Dept. Rambin was informed that it was possible that Ms. Penn
2 was not the suspect from the September 17 theft incident³. Dept. Rambin returned to the Target
3 and spoke to the lead loss prevention officer of that store, Kinley Baker, and asked to review all
4 loss prevention reports involving Ms. Penn (whose name had been associated with the reports
5 from June and July based on the information learned by Dept. Rambin in October 2024) and the
6 report and footage from the September 17 theft. Dept. Rambin realized that the suspect from
7 September 17 was not Ms. Penn. Dept. Rambin then asked Ms. Baker to re-compile all reports
8 involving Ms. Penn on a new flash drive. Dept. Rambin reviewed the evidence and documented
9 the following theft amounts in his report:

- 10 • June 2 - \$38.53
- 11 • June 24 - \$33.37
- 12 • June 24 - \$134.51
- 13 • July 24 - \$197.40
- 14 • July 25 - \$125.43
- 15 • July 27 - \$814.85
- 16 • August 2 - \$55.00
- 17 • September 5 - \$101.93 (Target Tanasbourne)
- 18 • September 19 - \$479.79

³ On December 24, 2024, Defendant filed a motion to withdraw a waiver of preliminary hearing. This presumably prompted the State to prepare the case for Grand Jury, at which point the DDA would have reviewed the surveillance footage from the two incident dates and discovered that the September 17 suspect was a different person than the September 18 suspect.

1 Dept. Rambin's report alleges that the total value of items taken from Target by Ms. Penn
2 between June 2-September 19, 2024, was \$1,350.81. It should be noted that the actual total of
3 these numbers is \$1,980.80. It should further be noted that Ms. Penn was still in custody on
4 September 19, 2024, due to her arrest the previous day.

5 At a Grand Jury proceeding on January 14, 2025, Kinley Baker testified to the following
6 theft incidents and amounts:

- 7 • June 2 – skip scanning (no amount stated)
- 8 • June 24 – floor returns (\$33.37) and skip scanning (\$134.51)
- 9 • July 24 – skip scanning (\$197.40)
- 10 • July 25 – skip scanning and floor returns (\$125.43 total)
- 11 • July 27 – skip scanning (\$184.85)
- 12 • August 2 – floor returns and skip scanning (\$55.00 total)
- 13 • September 18 – skip scanning (\$479.79)

14 The sum of these amounts is \$1,210.35⁴. Ms. Baker told the Grand Jury that Dept. Rambin had
15 been present on September 18 while investigating an unrelated theft. Dept. Rambin told the
16 Grand Jury that he had been contacted by Ms. Baker on September 18, who told him that a repeat
17 offender was actively engaging in a theft.

18 ///

⁴ It should be noted that the Ms. Baker's stated theft value for September 18 (\$479.79) is considerably greater than the amount originally reported by Dept. Rambin at the time she was arrested (\$285.56). However, re-adding these amounts with the lower value from September 18 gives a total of \$1,016.12, which is still over the \$1,000 threshold for Theft in the First Degree.

1 **III. MEMORANDUM OF LAW**

2 **a. Legal Standard**

3 Warrantless searches and seizures are per se unreasonable unless they fall within one of
4 the few specially established and well-delineated exceptions to the warrant requirement. The
5 State has the burden of showing, by a preponderance of the evidence, that circumstances existing
6 at the time of the search or seizure fall within one of the exceptions. ORS 133.693(4); *State v.*
7 *Davis*, 295 Or. 227, 237, 666 P2d 802 (1983). One such exception is an arrest supported by
8 probable cause. A police officer may arrest a person without a warrant if the officer has probable
9 cause to believe that the person has committed a felony. ORS 133.310(1)(a). ORS 131.005(11)
10 defines “probable cause” to arrest as a substantial objective basis for believing that more likely
11 than not an offense has been committed and that the person to be arrested has committed it.
12 Probable cause to support a warrantless arrest has two components: subjective belief and
13 objective belief. An officer must subjectively believe that a crime has been committed and thus
14 that a person or a thing is subject to seizure, and the officer’s subjective belief must be
15 objectively reasonable under the circumstances. *State v. Vasquez-Villagomez*, 346 Or. 12, 23,
16 203 P.3d 193 (2009). Under the “collective knowledge doctrine,” the officer conducting the stop
17 or arrest need not have personal knowledge of the facts amounting to probable cause, so long as
18 the arresting officer was acting at the behest of another officer who had both subjective and
19 objective probable cause. *State v. Soldahl*, 331 Or 420, 428, 15 P3d 564, (2000). (“[O]fficers
20 may direct one another to carry out lawful police activities. However, the state retains the

1 obligation at trial to establish that police action was initiated by an officer who had both
2 objective and subjective probable cause.”).

3 **b. Application**

4 The investigation of these thefts from Target as laid out in police reports shows that Dept.
5 Rambin believed that he was arresting the suspect from the September 17 theft. He formed this
6 belief based on information learned from Sarah Fillis and Dept. Orozco. He did not review the
7 surveillance footage and form his own conclusions. His subjective belief of probable cause was
8 not objectively reasonable because he did not have sufficient information to believe that Ms.
9 Penn had committed the September 17 theft for which he was arresting her. This is confirmed by
10 the fact that he did not realize that Ms. Penn was not the September 17 suspect until after the
11 State began preparing to take this case before a Grand Jury. Rather, he believed Ms. Fillis, by
12 way of Dept. Orozco, who said that this was the same suspect. But it does not appear that Dept.
13 Rambin had yet reviewed the footage from September 17, because if he had, he would not have
14 believed that Ms. Penn committed that crime. Against, this is confirmed by the fact that upon
15 reviewing the September 17 footage in December, he immediately realized that the suspect was
16 not Ms. Penn.

17 Because Ms. Penn was seized without probable cause, the search incident to arrest
18 performed by Dept. Whipple was also unlawful. Thus, the drugs found in her possession must
19 also be suppressed as the fruits of an unlawful seizure.

20 Finally, Ms. Penn was not identified as the suspect in the June and July 2024 after she
21 was arrested in September 2024. It was only through her wrongful arrest that the Washington

1 County Sheriff's Office was able to identify her as a suspect from the previously reported thefts.
2 But for the arrest of Ms. Penn, she would not have been identified. This is clear derivative use of
3 evidence from a wrongful seizure, and her identification in those thefts must be excluded as well.

4 IV. CONCLUSION

5 Ms. Penn's arrest by Dept. Rambin on September 18, 2024, was not supported by
6 probable cause because he objectively believed he was arresting her for a crime that was
7 different than the crime that Dept. Orozco had probable cause for. The failure of the deputies to
8 accurately pool their knowledge lead to a confusing string of events in which Ms. Penn was
9 initially charged with a crime that she objectively did not commit. Her wrongful arrest was what
10 allowed police to later develop probable cause for her arrest for prior thefts. This derivative use
11 of evidence must be excluded as fruit of the poisonous tree and be excluded.

12 Dated: April 7, 2025

13 s/Anna Lasher

14 Anna N. Lasher, OSB #153980

15 Attorney for Defendant
16
17
18
19
20
21
22
23

1 **CERTIFICATE OF SERVICE**

2 I hereby certify that I served the foregoing MOTION in case No. 24CR49043, on the
3 following:

4 Washington County D.A.'s Office
5 Justice Services Building
6 150 North First Avenue
7 Hillsboro, Oregon 97124
8 dafileandserve@co.washington.or.us
9

10
11 by emailing true copies thereof to the above specified email address(es).

Dated: April 7, 2025

s/Anna Lasher

Anna N. Lasher, OSB # 153980
Attorney for Defendant

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

THE STATE OF OREGON,

Plaintiff,

vs.

ASHLE' ANTOINETTE PENN,

Defendant.

Case Nos. 24CR27775, 24CR49043

MOTION FOR WITHDRAWAL OF
ATTORNEY

I, Anna N. Lasher, and Cornerstone Law Group, attorneys for Defendant in the above-captioned matter, move this Court for an Order allowing them to withdraw as attorney of record for the Defendant based upon the accompanying Declaration of Counsel.

Dated: April 9, 2025

s/Anna Lasher

Anna N. Lasher, OSB #153980

Attorney for Defendant

1 **CERTIFICATE OF SERVICE**

2 I hereby certify that I served the foregoing MOTION, accompanying DECLARATION &
3 proposed ORDER in Case Nos. 24CR27775, 24CR49043, on the following:

4 Washington County D.A.'s Office
5 Justice Services Building
6 150 North First Avenue
7 Hillsboro, Oregon 97124

8 By emailing a true copy thereof to dafileandserve@co.washington.or.us on April 9, 2025.

Dated: April 9, 2025

s/Anna Lasher

Anna N. Lasher, OSB # 153980

Attorney for Defendant

1 IN THE CIRCUIT COURT OF THE STATE OF OREGON
2 FOR THE COUNTY OF WASHINGTON
3

4 THE STATE OF OREGON,

5 Plaintiff,

6 vs.

7 ASHLE' ANTOINETTE PENN,

8 Defendant.
9

Case Nos. 24CR27775, 24CR49043

DECLARATION OF COUNSEL IN
SUPPORT OF MOTION FOR
WITHDRAWAL OF ATTORNEY

10 I, Anna N. Lasher, hereby declare, under penalty of perjury, the following to be true to
11 the best of my knowledge and belief:

- 12 1. I am the attorney of record for Defendant in the above-captioned case.
13 2. Defendant is currently out of custody.
14 3. I request to be withdrawn pursuant to RPC 1.16 because there has been a breakdown
15 of the attorney-client relationship.
16 4. This motion is not made for the purposes of delay.

Dated: April 9, 2025

s/Anna Lasher

Anna N. Lasher, OSB # 153980
Attorney for Defendant

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

April 28, 2025

ASHLE ANTOINETTE PENN
710 NW AUTUMN CREEK WAY APT L304
BEAVERTON OR 97006

Re: State of Oregon vs ASHLE ANTOINETTE PENN
Case #: 24CR49043 Offense Felony

IMPORTANT NOTICE
REGARDING CASE MANAGEMENT HEARING

Your case has been assigned to the OPDC docket. Currently the court is working to find a court appointed attorney for you. The court's goal is to ensure an attorney is appointed to you. Once an attorney is appointed your attorney will need to be able to get in touch with you and schedule your next court appearance. A check-in process is required to assure that your contact information remains current with the court. Once an attorney is appointed a hearing will be scheduled. Failure to keep your contact information current may result in your failure to appear for a future hearing. Failure to attend a hearing may result in a warrant being issued.

In order to participate in our automated phone check-in process you must have a valid cell phone number. To initiate the process, you will need to call the Pretrial Release Office at **503-846-6362 within 10 days of this notice**. A Release Officer will assist you in setting up your enrollment. You will receive a text message once this is completed with the details for your next scheduled phone check-in.

If you do not have a valid cell phone number, or you have not enrolled in the automated check-in process, a case management hearing will be scheduled, and you will need to appear in-person. Failure to appear at this hearing may result in a warrant being issued.

Home: 424-242-3374

Interpreter: If you need an interpreter, you must tell the court at least **4 business days before** your appearance date. Go to <http://www.courts.oregon.gov/languages/english/Pages/request-form.aspx> to get an interpreter.

Intérprete: Si ud necesita un intérprete, debe notificar al tribunal por lo menos 4 días laborales antes de la fecha de su comparecencia. Para conseguir un intérprete, siga el siguiente enlace: <http://www.courts.oregon.gov/languages/english/Pages/request-form.aspx>

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

THE STATE OF OREGON,

Plaintiff,

vs.

ASHLE' ANTOINETTE PENN,

Defendant.

Case Nos. 24CR27775, 24CR49043

ORDER FOR WITHDRAWAL OF
ATTORNEY

IT IS HEREBY ORDERED:

Attorney Anna N. Lasher, and the firm of Cornerstone Law Group, are withdrawn as attorneys of record.

The Law firm of _____ is hereby appointed to represent Defendant.

4/28/2025 3:46:38 PM



Circuit Court Judge, Brandon Thompson

Submitted by:

Anna N. Lasher, OSB #153980
Anna@cornerstone-lawgroup.com
(503) 648-7383

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR WASHINGTON COUNTY

24CR49043
OR
Order
19089008



STATE OF OREGON

ORDER

Case No: 24CR49043

Plaintiff

DA: GERTEN, ALICIA

vs.

Defense Attorney: GERTEN, ALICIA CASH, ANNA

Interpreter: _____ ☐ Language: _____

FTR Courtroom: 303C

Proceeding: MOTION

Verified Correct Copy of Original 4/28/2025

ASHLE ANTOINETTE PENN
Defendant

Truly named. ☐ Proceeded as named.

☐ Arraigned ☐ Rights Given ☐ Waived ☐ Not Guilty Plea ☐ Denial ☐ In Custody
Attorney: ☐ Appointed ☐ May Request ☐ Retained ☐ To Be Retained ☐ Waived
OSB#: _____ Name: _____ ☐ DUII Advisory Counsel ☐ Deferred Sentencing Counsel

If arraigned on a Domestic Violence or Sex Crime you are prohibited from contacting the named victim even while in custody

- ☐ Reset to _____ at _____, at Request of: _____
by: Telephone / Letter / Motion / Attorney
- ☐ Waived speedy constitutional trial/60-day rule rights for this continuance or waiver of 14-day rule for probation violation hearing.
- ☐ Guilty / No Contest Plea with Sentencing on _____ at _____
- ☐ Deferred Sentencing ☐ Declined ☐ PSI Ordered: DOB _____ ☐ Atty to be present
- ☐ Allowed ☐ Ineligible Counts/Charges: _____
- ☐ Waived Extradition ☐ Requested Governors Warrant Def. Contact Info.: _____

Next Personal Appearance(s): ☐ Preliminary Hearing ☐ Case Management Hearing on _____ at _____
☐ Final Resolution Conference ☐ _____ on _____ at _____
☐ Case Assignment ☐ _____ on _____ at _____
☐ Trial ☐ _____ on _____ at _____

Preliminary Hearing: ☐ Prelim Waived ** By: _____
☐ Probable cause found on Ct(s): _____ ☐ Probable cause not found on Ct(s): _____
☐ Information Dismissed ☐ Indicted ** ☐ Waived Indictment ** ** with Next Appearance Date: _____ at _____

☐ Failed To Appear for: _____ ☐ Security Forfeited: Judgment To Be Entered ☐ Security Not Forfeited At This Time
☐ Revoke Release ☐ Bench Warrant Ordered ☐ Arrest Warrant Ordered Security Amount: \$ _____

☐ Judgment of Acquittal Ct(s): _____ ☐ Finding of Not Guilty Ct(s): _____
☐ Judgment of Dismissal Ct(s): _____ ☐ Finding of Guilty Ct(s): _____
Other: 1st Withdrawn. A appointed OPDC and Given
Call in sheet
MANDATORY WITHDRAWAL

Date: 04/28/2025

Judge: [Signature] Brandon M. Thompson
Circuit Court Judge
BMT

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,

Plaintiff,

vs.

ASHLE PENN,

Defendant

Case No.: **24CR49043**

**DEFENDANT'S DEMURRER TO THE
INDICTMENT ACCOMPANIED BY
DEFENDANT'S MOTION TO DISMISS OR IN
THE ALTERNATIVE DEFENDANT'S
MOTION TO SUPPRESS**

Defendant requests oral argument and a pretrial hearing and Defendant estimates 120 minutes for oral arguments.

Official court reporting services are requested.

UTCRC 4.010 and UTCRC 4.050(1).

While Defendant acknowledges previously appointed counsel's motion to dismiss, Defendant incorporates those arguments only to the extent they are not in conflict with the stated facts herein. Defendant notes that appointed counsel's assertion that the value of property alleged to have been taken still exceeds the requisite felony threshold despite conflicting discovery appears inconsistent with documentary evidence, which Defendant's demurrer and alternative motions to suppress or dismiss will address in detail.

The following sections will present documentary evidence and factual inconsistencies for the Court's consideration, including: Discrepancies between reported values on different dates, Mathematical errors in summing merchandise values, Documentation showing certain items were counted twice, Timeline impossibilities in reporting sequences, Contradictions within the State's own documentary evidence and corresponding testimony.

I. Introduction

COMES NOW, Defendant Ash Le' Penn, through this Memorandum, respectfully submits her demurrer to the indictment and accompanying motion to dismiss and in the alternative motion to suppress. Although prior motions have been filed by appointed counsel without first attacking the sufficiency of the indictment, Defendant independently raises, in a proper and timely sequence, the threshold defects in the charging instrument pursuant to Or. Rev. Stat. § 135.630. Under Oregon law, demurrer issues must be resolved before any other pretrial challenges.

See *State v. Sanders*, 280 Or. 685 (1977). Defendant now challenges the indictment by contesting the legal sufficiency on its face.

II. Statement of Legal Standards

Defendant asserts that the indictment should be dismissed pursuant to grounds for demurrer under Or. Rev. Stat. § 135.630(2) as the indictment:

1. Fails to substantially conform to the requirements of Or. Rev. Stat. § 132.560 regarding joinder of offenses. See *Poston I*, 277 Or App at 143 holding that the fact that a defendant may demur to an indictment on the ground that it does not comply with Or. Rev. Stat. § 132.560 supports the conclusion that “a charging instrument must show *on its face* that the requirements of Or. Rev. Stat. § 132.560 *have been met*” (emphases in original).
2. As stated, contains facts which do not constitute an offense (Or. Rev. Stat. § 135.630(4));
3. Contains matters which, if true, would constitute a legal justification or excuse of the charged offense or other legal bar to the action (Or. Rev. Stat. § 135.630(5)); and
4. Lacks the definiteness and certainty required by Oregon statutes and constitutional guarantees (Or. Rev. Stat. § 135.630(6)).

III. Argument

A. Grounds for Demurrer

1. Improper Joinder — Or. Rev. Stat. § 135.630(2)

The Indictment charges two distinct offenses: Theft in the First Degree under Or. Rev. Stat. § 164.055; and Unlawful Possession of Methamphetamine under Or. Rev. Stat. § 475.894— claiming these are “separate act[s] and transaction[s] but as part of crimes that are of the same or similar character and common scheme and plan.”

No factual basis has been provided sufficiently connecting the alleged theft and drug possession to a common scheme or stating with specificity how they are of the same or similar character.

Under Or. Rev. Stat. § 132.560(3), charges may be joined if they are “of the same or similar character” or “based on the same act or transaction.” In determining whether joinder is proper, Oregon courts consider factors such as “the temporal proximity of the acts, similarities in the elements of the offenses, whether there will be similar evidence or evidentiary overlap, and whether the charges involve the same or similar victims, locations,

1 intent, modus operandi, or acts.” See *State v. Brown*, 326 Or App 293, 299-300, 532 P3d 1078 (2023) (quoting
2 *State v. Garrett*, 300 Or App 671, 682-84, 455 P3d 979 (2019), rev den, 366 Or 827 (2020)).

3 As established in *State v. Poston*, 277 Or. App. 137, 370 P.3d 904 (2016), rev. den., 360 Or. 423
4 (2016), on reconsideration, 285 Or. App. 750, 399 P.3d 488 (2017), improper joinder occurs when separate
5 offenses lack factual interdependence. Here, the alleged theft and drug possession incidents are independent in
6 elements, time, motive, and proof. Theft in the first degree and possession of methamphetamine have no
7 overlapping elements. Theft involves taking/appropriating property, while possession of a controlled substance
8 (PCS) involves merely possession of contraband; theft requires intent to deprive the owner of property, while PCS
9 requires knowing possession; theft concerns property belonging to another person, while PCS concerns an illegal
10 controlled substance; there is no indication of a similar modus operandi connecting theft and PCS and there appears
11 to be no inherent evidentiary overlap.

12 Or. Rev. Stat. § 135.630 requires a charging instrument that charges multiple crimes to allege a basis for
13 joinder in the language of this section or with facts that are sufficient to establish compliance with this section. The
14 requirements that the statute imposes for joinder, in turn, are enforceable by demurrer under Or. Rev. Stat. §
15 135.630(2).

16 **2. Failure to State a Crime — Or. Rev. Stat. § 135.630(4)**

17 **i. Insufficient Allegations of Culpable Mental State**

18 The Indictment merely asserts that Defendant "did unlawfully commit theft," without alleging a required
19 culpable mental state. Or. Rev. Stat. § 164.015 demands "intent to deprive another of property," not merely an
20 "unlawful" taking. The Oregon Court of Appeals in *State v. Felt*, 108 Or. App. 730 (1991), emphasized that
21 conclusory allegations are insufficient to establish criminal intent. The failure to allege that Defendant acted
22 "intentionally," "knowingly," "recklessly," or "with criminal negligence" (Or. Rev. Stat. § 161.085) renders the
23 indictment void under Or. Rev. Stat. § 135.630(4).

24 **ii. State's Discovery Disproves Essential Felony Elements**

25 The State's own evidence undermines both the felony and misdemeanor charges which according to
26 *Sprewell v. Golden State Warriors* 266 F.3d 979, 988 (9th Cir. 2001) at the motion to dismiss stage, “[t]he court
27 need not . . . accept as true allegations that contradict matters properly subject to judicial notice or by exhibit” and
28 the Court may disregard that allegation.

1 The State's valuations of merchandise allegedly taken appears questionable across several records showing
2 substantial and troubling discrepancies in the individual and total valuations. The inventory lists contain duplicate
3 entries where items are listed multiple times and includes items that were not actually alleged to have been taken
4 directly within the relevant narrative for the incident. When these accounting discrepancies are properly addressed,
5 the resulting amalgamated valuations appear to fall below the \$1,000 felony threshold. These accounting
6 discrepancies in the State's own records raise questions regarding the reliability of the evidence purportedly
7 establishing the felony threshold required for Theft in the First Degree.

8 The night of Defendant's arrest, officers documented a total of \$285.55 in the police report in contrast to a
9 much higher value of \$479.79 later provided relating to the September 18th incident. On the night of Defendant's
10 arrest the \$285.55 included one alleged return—totaling \$93.53 and the other amount alleged to be made up of items
11 not paid for nor returned in the amount of \$192.03 making the total amount, according to police narratives \$285.55
12 (the correct summation would total \$285.56).

13 Further, Target subsequently provided a total loss valuation from the night of Defendant's arrest claiming
14 a total of \$479.79 - a 68% increase achieved by double-counting 16 of the 24 allegedly stolen items. Most notably,
15 a vacuum cleaner, which was a central focus during the arrest and clearly identifiable as a single item, appears
16 twice on Target's loss prevention records. Such discrepancies warrant judicial scrutiny, particularly when
17 considering that the revised valuation places the total above thresholds relevant to charging decisions. The Court
18 may wish to examine whether these record-keeping practices satisfy the standards of accuracy and reliability
19 contemplated in Or. Rev. Stat. § 165.080, particularly as they relate to establishing both probable cause as well as
20 the elements of the charged offense that depend on precise valuation.

21 Along with inflated loss values causing serious concern about the basis for probable cause in support of
22 the charge of theft, the state's own laboratory testing establishes that the seized substance weighed less than two
23 grams. This measurement appears to implicate a critical element of the charge of Possession of Methamphetamine
24 under Or. Rev. Stat. § 475.894. The Court may wish to consider whether this scientific evidence provided by the
25 State itself, can lawfully justify that all elements necessary to maintain this charge have been sufficiently stated. As
26 articulated in *State v. Sanders*, 280 Or. 685 (1977), an indictment is insufficient where it is contradicted by the
27 State's own evidence.

28 **3. Presence of a Legal Bar to Prosecution — Or. Rev. Stat. § 135.630(5)**

1 Defendant further demurs to the charging instrument on the grounds that the alleged conduct falls within
2 the realm of merchant-consumer contractual relationships governed by the Uniform Commercial Code, not
3 criminal law. Even the Criminal Law Revision Commission's Commentary to Or. Rev. Stat. § 164.015 explicitly
4 recognizes that certain property disputes should be resolved through civil remedies rather than criminal
5 prosecution. See *State v. Dumond*, 270 Or. 854, 855 (Or. 1974) court held that if an injured party has a remedy by
6 a civil action, the crime may be compromised.

7 The allegations presented may not sufficiently address the element of 'intent to deprive' as contemplated
8 under Or. Rev. Stat. § 164.015. UCC § 2-314 through § 2-316 establish the contractual nature of merchant-buyer
9 relationships, including implied warranties and obligations. UCC § 2-703 specifically outlines sellers' remedies for
10 breach of payment obligations, demonstrating the legislature's intent to address these matters through civil
11 channels. Target's appropriate remedy, if any, lies in these UCC provisions, not criminal prosecution. The Court
12 should consider whether such circumstances may affect the ability to establish the mental state contemplated by the
13 legislature in Or. Rev. Stat. § 164.015.

14 Furthermore, merchants bear a duty to notify customers of potential payment issues before
15 escalating to accusations of theft, particularly in situations involving self-checkout or where items may be
16 inadvertently overlooked. Industry standards and the doctrine of good faith and fair dealing (UCC § 1-304) support
17 this obligation. The record does not indicate that Target provided notice or an opportunity to address potential
18 payment issues before pursuing criminal charges. The Court may consider whether such practices align with the
19 obligations of good faith and fair dealing under UCC § 1-304.

20 Criminal prosecution is inappropriate where the dispute centers on contractual obligations and
21 understandings. Even accepting the State's allegations as presented, the Court may consider whether these
22 circumstances more closely resemble the contractual disputes contemplated by the UCC rather than the criminal
23 conduct addressed by theft statutes. The indictment improperly transforms what may at most constitute a breach of
24 contract into a criminal prosecution, violating legislative policy and constitutional protections for contractual
25 relationships.

26 **4. Accusatory Instrument is Not Definite and Certain.**

27 Defendant challenges the indictment for failing to meet the constitutional and statutory requirements of
28 definiteness and certainty under Or. Rev. Stat. § 135.630(6).

1 The valuation element, which is essential to establishing Theft in the First Degree, contains
2 inconsistencies that may render it insufficient under the standards required by Or. Rev. Stat. § 135.630(6). The 68%
3 discrepancy in valuations raises questions about whether the indictment satisfies the standards of reliability,
4 definiteness and certainty articulated by the Oregon Supreme Court in *State v. Sanders*, 280 Or 685, 690 (1977).
5 Furthermore, the indictment's reliance on the term 'unlawfully,' without further specification, may present issues of
6 notice within the context of a merchant-consumer transaction. The Oregon Supreme Court in *State v. Sanders*, 280
7 Or 685, 690 (1977), held that an accusatory instrument must "set forth the acts constituting the offense with such
8 certainty as to enable the accused to understand the nature of the charge." The term "unlawfully" can encompass a
9 range of conduct—from breach of contract to regulatory violations to criminal acts—and fails to specify which
10 actions the state considers criminal.

11 This ambiguity is especially problematic in a retail context where the line between incomplete transactions
12 and theft may depend on various factors including merchandise placement, clear customer intent, store policies,
13 and payment processing. The indictment does not identify specific acts or omissions that allegedly transformed an
14 ordinary consumer transaction into a criminal act. This lack of specificity is likely to affect Defendant's ability to
15 understand the nature of the allegations and prepare an adequate defense.

16 As the Court of Appeals noted in *State v. Kincaid*, 78 Or App 23, 30 (1986), "The purpose of an
17 indictment is to inform the defendant of the nature of the crime with sufficient particularity to enable him to make
18 his defense." The Court may consider whether the absence of clear allegations describing the specific nature of the
19 allegedly 'unlawful' conduct satisfies the standards of definiteness and certainty required by Or. Rev. Stat. §
20 135.630(6) and relevant case law, as it could refer to numerous scenarios including: inadvertent failure to complete
21 a transaction, disputed payment processing, or merchandise accidentally left in a shopping cart—each carrying
22 vastly different legal implications.

23 **IV. Legal Standards Related To Motion to Dismiss**

24 The record in this matter contains troubling factual discrepancies that warrant this Court's careful and strict
25 scrutiny. Defendant respectfully submits:

- 26 **1. Documentary Evidence Discrepancies:** The prosecution's own evidence contains mathematical
27 inconsistencies, including:

- 28 A. Reported incident values that do not match itemized merchandise lists

1 B. Documented instances of double-counting items appearing to inflate values to achieve felony
2 thresholds

3 C. Unexplained numerical disparities in official reports

4 D. Admissibility of the state's evidence both purporting to support probable cause as well as claims
5 of loss

6 2. Timeline Impossibilities: State's discovery of text messages claim knowledge of information that
7 would have been impossible to possess at the time reported, specifically:

8 A. A message sent upon Defendant's entry into Target on September 18, 2024 at 9:06 PM, containing
9 dollar amounts for merchandise not yet selected and identifying ten incidents when at most there
10 would have been nine.

11 B. References to a "10th incident" when documentation accounts for only 9 and, again, an amount
12 that would have only been known to law enforcement and the state at the conclusion of Defendant's
13 time in Target, but not at the moment she entered the store.

14 3. Evidence Manipulation Indicators: The record contains factual contradictions suggesting alteration of
15 evidence, including:

16 A. Transposition of numbers increasing alleged values (\$148.85 reported as \$814.85 and a 68%
17 increase in value from the September 18th incident going from \$285.55 to \$479.79)

18 B. Inclusion of merchandise documented as abandoned or returned in total theft values

19 C. Communications lacking required timestamps and authentication elements

20 4. Disparate Treatment Concerns: The documentation raises questions regarding the application of
21 investigative and charging procedures, including:

22 A. The focus on Defendant contradicted by surveillance footage in the possession of law
23 enforcement at the time of arrest

24 B. Disparities in the state's grand jury policies

25 C. Selective enforcement indicators apparent in report discrepancies

26 These documented factual contradictions necessitate judicial examination of the evidence gathering,
27 reporting, and grand jury processes that form the foundation of this prosecution.

28 **B. Grounds for Motion to Dismiss**

1 **1. Duty of Candor to Court and Defendant's Due Process Entitlements**

2 The court is invited to consider the information known to the state at the time of this matter's grand jury
3 proceeding and scrutinize whether the prosecution appeared to violate its obligation not to permit materially false
4 and misleading testimony and its duty of candor before the court during the grand jury regarding:

- 5 a. Who contacted law enforcement, when and for what purpose;
6 b. The valuation of alleged losses and the presence of certain reporting/complaining parties;
7 c. The chain of events surrounding Defendant's arrest.

8 Discovery materials show that statements made to the grand jury differ from contemporaneous reports and
9 other narrative statements made on the night of Defendant's arrest. Specifically, the grand jury witnesses' accounts
10 regarding the chain of events and valuation of merchandise were inconsistent with those earlier reports.

11 Additionally, information about the circumstances of Defendant's arrest was conspicuously not presented
12 to the grand jury with only information gathered much later after Defendant's arrest and the state's realization that
13 a misidentification had occurred. The state's search and seizure of information appears to have exceeded what
14 would be a constitutionally permissible search by private party and still, the facts surrounding Defendant's arrest
15 were not candidly provided to the grand jury but only information which was gathered through the state's search by
16 proxy was. Defendant requests that the court consider whether there was probable cause or reasonable suspicion to
17 conduct this warrantless search which exceeded the initial private search and adjudicate whether this investigation
18 complied with Fourth Amendment and Oregon's protections against unreasonable and/or unlawful searches.

19 The information presented to the grand jury described events stemming from a search conducted months
20 after Defendant's arrest violating Article 1 § 9 of the Oregon Constitution and the Fourth Amendment. The
21 information did not include facts surrounding the original incident, although contemporaneous reports and witness
22 statements containing that information were available to the State. Instead, the State elected to present only
23 information obtained through a post-hoc search, without disclosing the circumstances of Defendant's initial arrest
24 to the grand jury to accomplish what appears to be avoiding the fact that Defendant was racially profiled and
25 misidentified; all a violation of Defendant's due process.

26 **2. Fabrication of Probable Cause — Franks Violation**

27 The record in this case reflects several factual inconsistencies between the Officer's affidavit and
28 contemporaneous reports regarding key allegations.

- 1 a. The officer's affidavit states: "While waiting for the female to leave the store, Sarah informed me that her
2 and another male, Barry Washington, were actively removing the security wrapping off of a vacuum."
- 3 b. The contemporaneous incident reports from the night in question do not document this specific allegation
4 against the Defendant but instead state: "When I arrived at the store, I was informed that the female was
5 currently selecting items inside the store and that Sarah had witnessed the male removing the security wire
6 from a vacuum."
- 7 c. The surveillance footage reviewed does not show the Defendant engaging in this activity.
- 8 d. The contemporaneous reports explicitly attribute the tag removal to the Defendant's companion, not to the
9 Defendant although even this allegation is not supported by the provided footage.
- 10 e. Even Target's detailed minute-by-minute account of the pair's in-store behavior does not support the
11 allegation that the Defendant removed security tags.

12 In *Franks v. Delaware*, 438 U.S. 154 (1978), the Supreme Court addressed the significance of accurate
13 information in sworn statements. Oregon courts have recognized similar principles in cases such as *State v. Hulse*,
14 198 Or App 41 (2005) and *State v. Johnson*, 340 Or 319 (2006), establishing the importance of truthful and
15 accurate information in probable cause determinations.

16 The factual discrepancies presented here relate directly to elements required for probable cause as well as
17 the charged offense, including both valuation and intent. The contradictions are documented in the Officer's own
18 reports and statements, creating a record that contains mutually exclusive factual assertions about the same
19 incident.

20 Additionally, the probable cause affidavit references a third-party tip identifying Defendant as a "known
21 offender." The affidavit specifies for the first instance the unlawful conduct of a security tag removal not alleged to
22 have occurred by the reporting witness' account but allegedly, as reflected in Officer Rambin's report was said to
23 have been observed by the tipster who, again, does not make the same claim in their own contemporaneous reports.
24 It is further questionable that the third party tip was alleged to have come from Sarah Fillis and was made to
25 Officer Orozco in Officer Rambin's report yet Officer Rambin testified that Kinley Baker notified him directly.
26 Still, reporting witness statements do not describe any unlawful behavior from Defendant, nor was there any
27 independent police corroboration of the tip prior to Defendant's arrest which may have proven difficult as, again,
28 there was no unlawful behavior observed by the reporting or complaining party. Under the standards articulated

1 in *State v. Marx*, 287 Or. 351 (1979), probable cause based on third-party information generally requires some
2 indication of reliability or corroboration.

3 Because the grand jury testimony identified that it was Kinley Baker who contacted Officer Rambin and
4 not Sarah Fillis contacting Officer Orozco as established by the probable cause affidavit, there are serious concerns
5 warranting judicial scrutiny related to the reliability of the tip, the presentation of testimony to the grand jury as
6 well as the statements made in the officer's probable cause affidavit – each of which is contradictory when viewed
7 collectively.

8 **3. Factual Issues Regarding Third-Party Information**

9 The probable cause affidavit in this matter references a third-party tip identifying Defendant as a "known
10 offender." Upon review of the affidavit and supporting documentation, no independent police corroboration of this
11 tip appears to have occurred prior to Defendant's arrest. The discovery materials contain no information regarding
12 the tipster's reliability, basis of knowledge, or any verification procedures employed by law enforcement.

13 Moreover, the record reveals inconsistent attributions as to the source of this information, with
14 contradictory statements about who provided the initial identification. Documentation indicates this identification
15 occurred primarily based on racial characteristics similar to a prior suspect.

16 Oregon courts have established specific requirements regarding reliance on third-party information. In
17 *Draper v. United States*, the Court held that, when police rely on information from a third party to establish
18 probable cause, corroboration of the informer's tip would establish probable cause. Oregon courts have followed in
19 this practice holding that under Article I, section 9, of the Oregon Constitution, when a police officer relies solely
20 on information from someone else to establish probable cause, the state must demonstrate that the information
21 received is reliable." Similarly, in *State v. Holdorf*, 355 Or 812, 822 (2014), the Oregon Supreme Court held that
22 "the state must establish that an informant's information is reliable under the totality of the circumstances."

23 The documentation in this case lacks any demonstration of such reliability factors. This factual void
24 regarding verification procedures raises significant questions about the initiation of this case that merits judicial
25 examination. What's more is that officers had the benefit of surveillance in their custody which, if consulted, would
26 have established that Defendant was not the individual whom she was misidentified to be, but officers did not
27 conduct a constitutionally sufficient investigation in light of the full set of circumstances. The probable cause
28 affidavit submitted by Officer Rambin materially misstates and omits critical facts, warranting judicial scrutiny as

1 to whether these statements present a substantial preliminary showing of potential falsehood or reckless disregard
2 for the truth under *Franks v. Delaware*, 438 U.S. 154 (1978).

3 **4. Suppression and Spoliation of Evidence**

4 The discovery provided to date does not include certain items referenced in the reports including purchase
5 receipts in Defendant's hand at the time of her arrest proving lawful ownership of the items returned. These
6 omissions, if found to be true, violate *Brady v. Maryland*, 373 U.S. 83 (1963) and Oregon due process standards,
7 warranting dismissal.

8 **5. Violations of Due Process — Oregon and Federal Constitutions**

9 The cumulative constitutional violations include:

- 10 a. Unlawful seizure (Art. I, § 9, Or. Const.; Fourth Amendment);
- 11 b. Deprivation of notice and fair trial (Art. I, § 10, Or. Const.; Fourteenth Amendment);
- 12 c. Impaired right to counsel and confrontation (Art. I, § 11, Or. Const.; Sixth Amendment);
- 13 d. Denial of equal protection (Art. I, § 20, Or. Const.; Fourteenth Amendment).

14 These systemic violations undermine the legitimacy of the proceedings and mandate dismissal.

15 **6. Selective Prosecution Based on Racial Bias**

16 Defendant was targeted based on racial similarity to a prior suspect without individualized reasonable
17 suspicion. Selective enforcement based solely on race violates the Equal Protection Clause of the Fourteenth
18 Amendment and Art. I, § 20 of the Oregon Constitution. See *United States v. Avery*, 137 F.3d 343 (6th Cir. 1997).
19 The state convened a grand jury although internal policies provide that at least three grand jury witnesses are
20 required to qualify a case for grand jury and although Defendant requested a preliminary hearing to challenge the
21 basis for probable cause in the charging process in open court.

22 **7. Violation of Right to Meaningful Participation in Defense**

23 Despite Defendant's clear invocation of the right to contribute to fundamental trial decisions (such as
24 demurrer), prior counsel failed to raise a demurrer before seeking dismissal. This denial of strategic autonomy
25 violates *Faretta v. California*, 422 U.S. 806 (1975) and *McCoy v. Louisiana*, 138 S. Ct. 1500 (2018).

26 **IV. PRAYER FOR RELIEF**

27 WHEREFORE, Defendant respectfully requests that this Court:

- 28 1. Sustain the Demurrer and dismiss the Indictment with prejudice;

2. Suppress all evidence obtained through unconstitutional means;
3. Vacate all subsequent proceedings tainted by structural error;
4. Preserve all statutory and constitutional objections for appellate review; and
5. Grant such other relief as the Court deems just and proper.

Respectfully submitted,

Dated this 28th of April, 2025.

Ash Le' Penn
Defendant

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

April 29, 2025

Anna Niederkorn Lasher
Cornerstone Law Group
1328 SW Baseline St Ste 104
Hillsboro OR 97123

Re: State of Oregon vs ASHLE ANTOINETTE PENN
Case #: 24CR49043 Offense Felony

NOTICE OF SIGNED DOCUMENT

A case event that includes a signed document has been added to the Register of Actions for this case.

For further information, log into the Oregon eCourt Case Information (OECI) system or go to a public access kiosk at the courthouse.

Note: Documents may not be attached to events depending on local court business processes.

THE STATE OF OREGON,
Plaintiff,
vs.
ASHLE' ANTOINETTE PENN,
Defendant.

ORDER RE: DEFENDANT'S MOTION
TO DISMISS PURSUANT TO ORS
135.070

It is HEREBY ORDERED AND ADJUDGED that Defendant's Motion to Dismiss is:

☒ Denied.

Brandt Thayer

Circuit Court Judge, Brandon Thompson

CORNERSTONE LAW GROUP
1328 SW Baseline St., Suite 104
Hillsboro, OR 97123
(503) 648-7383
Fax (503) 648-0907
office@cornerstone-lawgroup.com

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124

Case No: 24CR49043

State of Oregon
vs
ASHLE ANTOINETTE PENN

Order Re:
Court Appointed Counsel

Case Type: Offense Felony

Applicant: ASHLE ANTOINETTE PENN

The court orders as follows:

The applicant's request for court-appointed counsel is:

- ☐ **Denied**
- ☒ **Approved** (*Attorney Name*): OPDC
is appointed as counsel for the defendant, contingent upon further verification
- ☐ OPDC will review the application for non-routine expenses.
- ☒ Attorney contract or fee disputes shall be referred to the Presiding Judge.

The \$20 Application Fee is:

- ☐ **Ordered**, due in 30 days
- ☐ **Waived**

The Contribution Amount is:

- ☐ **Ordered**, in the amount of , due in 30 days
- ☐ **Waived**

If Applicant is a minor, the ordered amounts are payable by (name):

6/12/2025 3:30:44 PM

Nunc Pro Tunc
4/28/2025



Circuit Court Judge, Brandon Thompson

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

June 11, 2025

Washington County Deputy District Attorney
150 North 1st Ave, Ste 300
Hillsboro OR 97124

Re: State of Oregon vs ASHLE ANTOINETTE PENN
Case #: 24CR49043 Offense Felony

NOTICE OF SIGNED DOCUMENT

A case event that includes a signed document has been added to the Register of Actions for this case.

For further information, log into the Oregon eCourt Case Information (OECI) system or go to a public access kiosk at the courthouse.

Note: Documents may not be attached to events depending on local court business processes.

Verified Correct Copy of Original 6/11/2025.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,

Plaintiff,

v.

Ashle Antoinette Penn,

Defendant.

Case No. 24CR49043

**AFFIDAVIT FOR VIOLATION OF
RELEASE AGREEMENT**

() Issue Bench Warrant and
Schedule Show Cause Hearing
(xx) Schedule Show Cause Hearing

AFFIDAVIT

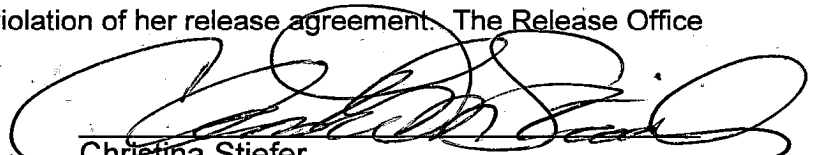
I, the undersigned, am a Supervisor for Pretrial Release in the Circuit Court of Washington County, Oregon.

The above-named defendant signed a release agreement on September 20th, 2024 which ordered the defendant to have no contact with co-defendants. Please see the attached Security Release Agreement. The Order for Release signed by Judge Elizabeth Lemoine on September 9th, 2024, identifies the co-defendant in this matter as Barry Washington. See the attached order.

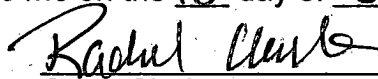
On the 10th day of June 2025, an email was received from Molly McBride, a Parole & Probation Officer with Washington County. According to Ms. McBride there has been recent contact violations between Ashle Penn and Barry Washington, her co-defendant. According to a Washington County Sheriff's Office police report #50-2025-6479, Ms. Penn was located at the same residence as Mr. Washington during a warrant apprehension that occurred on May 10th, 2025. See the attached email.

It appears the defendant is in violation of her release agreement. The Release Office recommends a Show Cause Hearing.




Christina Stiefer
Pretrial Release Supervisor

SUBSCRIBED AND SWORN to before me on the 10th day of June, 2025


Court Clerk Rachel Clark

***** ORDER *****

Based on the Affidavit of the above, it is hereby ORDERED that the defendant be and is hereby required to appear on June 23rd, 2025 so that a Show Cause Hearing may be set. at 10:30 am.

DATED: 6/10/25


Circuit Court Judge C. Colburn

SECURITY RELEASE AGREEMENT

CIRCUIT COURT, STATE OF OREGON, WASHINGTON COUNTY

STATE OF OREGON v. PENN, ASHLE ANTOINETTE Defendant

DEFENDANT ABOVE NAMED, ON OATH SAY AND AGREE:

To personally appear at all of my court dates in this case
unless otherwise allowed by the Court.

I agree to appear on: 09/20/2024 1:00 PM

Total Charges for Case #: 2

164.055 THEFT 1ST DEG - 1 FEL x 1

475.894 UNL POSSESS METHAMPHETAMINE - 1 MISD x 1

10% of: 250 : \$: 250 : paid in cash at: 6900 , am/pm this date: 9-20-24 : set by [] Schedule, [] Warrant, [] Judge

WASHINGTON COUNTY CIRCUIT (HILLSBORO) 145 N.E. 2ND AVE., HILLSBORO, OR. 97124 503-846-6362

Check daily calendar for courtroom assignment, and to appear thereafter as ordered by the Court until discharged.

To submit to all orders and processes of the Court.

Not to leave Oregon without permission of the Court (for permission, contact the Court Release Office).

4(a). If initialed, I understand that I have court permission (subject to my waiver of extradition rights below) to reside in Washington State at the address on this release form. _____ (Initials of Release Officer)

To keep the Court, my Attorney, and my Responsible Person advised of my correct address at all times and to maintain adequate contact with my attorney such that the attorney can contact me on short notice at all times.

6) To obey all laws and notify the Court immediately if arrested or cited for any offense (other than traffic violations).

7. You are not to have any direct or indirect contact with the victim and/or co-defendant(s) unless specifically authorized by the Court. "Victim" means the person(s) who have suffered financial, social, psychological, or physical harm as a result of the alleged crime(s).

8. To also obey the following condition(s): Initial: [Signature]

You are not to possess or consume any alcohol.

You are not to possess or consume any illegal drugs.

You are not to possess any dangerous weapons, firearms, knives, etc.

You are not to have any contact with the victim's family, co-defendant's or witness's.

You are not to go within 150 yards of the victim's residence, work, vehicle or person. Victim: TARGET

~~NO CONTACT WITH CO-DEFENDANT BARRY WASHINGTON.~~**I UNDERSTAND FULLY THAT:**

1. A willful failure to appear in Court is a separate and serious crime punishable by fine, jail or prison sentence.
2. A willful failure to appear in Court results in a waiver of my speedy trial rights on all charging instruments, including subsequently filed indictments, arising from the criminal episode which is the subject of this release agreement.
3. A willful failure to appear in Court may negate my speedy trial rights if I leave the State even if the State fails to extradite me.
4. That the Court may modify or revoke this agreement and my release and may add conditions or require security to be posted.
5. That any breach of this agreement may be punished as contempt of court and result in re-arrest.
6. I must provide an address, phone number, email or any combination of, so the court can send a reminder notice. The contact avenues can include a family, friend, or shelter's address or phone to number.
7. If posted, the state will retain a 15% service fee from the account posted, not less than \$5.00 for expenses. This applies when the 10% security amount is posted. If the full security amount is posted, no 15% service fee will be retained.
8. All security amounts will be receipted in the name of the person posting security and will be applied to any fines, fees, restitution or court-ordered financial obligation in this case or any other case the defendant or surety owes on, in this Court or any other Circuit Court in Oregon. Any refundable amount may be returned to the person who posted at the disposition of this case.
9. If I do not comply with the conditions of the release agreement, including but not limited to failure to appear in Court, the Court shall enter an order delcaring the entire security amount to be forfeited. The order or forfeiture will be mailed to you at the address you have provided in your release agreement. It is your responsibility to advise the court of any changes in address. Notifying the Post Office or the Sheriff's Office is inadequate. Notice shall be in writing to Washington County Court Pretrial Release Office, 215 SW Adams, Hillsboro, OR. 97123

Subscribed and sworn to before me and receipted this 20th of September, 2024Printed Name of Officer: B. DannerSignature of Officer: [Signature]Title: DutyAgency: WCSO

Language: _____

Interpreter: _____

SECURITY RELEASE AGREEMENT

CIRCUIT COURT, STATE OF OREGON, WASHINGTON COUNTY

STATE OF OREGON v. PENN, ASHLE ANTOINETTE Defendant

UNDERSTAND THAT IF I AM FOUND OUTSIDE THIS STATE IN VIOLATION OF THIS AGREEMENT, I HEREBY WAIVE MY RIGHT
TO CONTEST EXTRADITION BACK TO THE STATE OF OREGON.
I HAVE READ, FULLY UNDERSTAND AND VOLUNTARILY SIGNED THIS AGREEMENT.

Date: 9/20/2024, Signature of Defendant: X

Height: 504, Weight: 160, Hair: BLK, Eyes: BRO, Birth Date: 02/15/1988

Address: 2850 SW CEDAR HILLS BLVD # 234 BEAVERTON, OR 97005

Mailing Address if different:

Phone: (424) 242-3374

Your Email:

Family/Friend/Shelter Phone:

Family/Friend/Shelter Address:

Family/Friend Email:

Verified Correct Copy of Original 6/11/2025
Verified Correct Copy of Original 9/20/2024

Subscribed and sworn to before me and receipted this 20th of September, 2024Printed Name of Officer: B. DammSignature of Officer: [Signature]Title: DeputyAgency: WCSO

Language: _____

Interpreter: _____

Verified Correct Copy of Original 6/11/2025.
Verified Correct Copy of Original 9/26/2024.

Washington County Jail - OR 9/20/2024 09:00 AM

Resident Transaction Receipt

Transaction 960748

Receipt:

Resident

Name PENN, ASHLE ANTOINETTE

JID Booking ID

7822561 2409298

Pod: Cell:

POD 4 013

Transaction

Date/Time	Accounting Event	Amount
9/20/2024 8:00 AM	Pay Bail Check	\$250.00

Description

24CR49043

Accounts

Account	Current Balance
Trust	\$5.52

Signature

Date

WASHINGTON COUNTY
JAIL DIVISION/INMATE TRUST ACC

55743

Date: 09/20/2024
Amount: 250.00
Payee: WASHINGTON COUNTY CIRCUIT COURT
Memo: 24CR49043
Inmate ID: 7822501
Inmate Name: PENN, ASHLE

OFFICIAL RECEIPT
OREGON JUDICIAL DEPARTMENT
Payments Accepted Online
www.courts.oregon.gov Select OJD Courts E-Pay

PAID BY
PENN, ASHLE ANTOINETTE
7101 N V AUTUMN CREEK WAY APT L304
BEAVERTON, OR 97006

Receipt No.
2024-631407
Transaction Date
09/26/2024

Description		Amount Paid
On Behalf Of PENN, ASHLE ANTOINETTE 24CR49043 State of Oregon vs ASHLE ANTOINETTE PENN Bond Account		
Security Release		250.00
SUBTOTAL		250.00
PAYMENT TOTAL		250.00
Check (Ref #55743) Tendered		250.00
Total Tendered		250.00
Change		0.00
09/26/2024 03:23 PM	Cashier Station WSHW334	Audit 282108423

OFFICIAL RECEIPT

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

ORDER on ☒ Release Hearing
☐ Release Status Check
☐ Modification of Release
☐ Violation of Release

STATE OF OREGON)
Plaintiff,)
vs)
Ashlee Antoinette Penn,)
Defendant.)

Case No. 24CR49043
Deputy DA Hill
Defense Atty Garcia
Interpreter _____
Hearing Date 9/19/24

This matter having come before the Court with:

☒ Defendant present ☒ In Custody
☐ Defendant not present

it is hereby ORDERED by the Court that:

Security Release: ☒ Same ☒ New Security Amount: \$ 2,500 (Post 10%)
_____ Conditional Release, with special conditions as listed below
_____ NO FORCED RELEASE

Special Conditions:

- _____ 1. Responsible person, approved by Court Release Office: _____
- _____ 2. Reside with responsible person or: _____
- _____ 3. Obey all house rules
- _____ 4. Curfew from _____ PM to _____ AM
- _____ 5. House arrest
- _____ 6. Not to leave the residence unless with the responsible person
- _____ 7. Not to leave residence unless with person(s) approved by Court Release Office
- _____ 8. May leave residence for school, work, counseling, legal, medical, other _____
- ☒ 9. Not to possess or consume (a) alcohol, (b) illegal drugs, (c) dangerous or deadly weapons, (d) other _____
- ☒ 10. Not to have any contact with (a) victim, (b) family of victim, (c) witnesses Target
- _____ 11. Pretrial Electronic Monitoring through Vigilnet: (a) GPS, (b) alcohol, (c) both
- _____ 12. Report to PO in person within 24 hours of release from custody
- _____ 13. Report address to the Court in writing upon release from custody
- _____ 14. Sign and abide by the "no contact with minors" addendum
- _____ 15. May not operate a motor vehicle without valid license and insurance
- _____ 16. Not possess ID, checks or credit cards that do not belong to defendant
- ☒ 17. Additional conditions ordered by the Court: No contact w/ Co-Defendant
Barry Washington.

Next court date, time & courtroom: _____

Dated 9/19/24

Elizabeth Lerner
Judge's Signature (Please print or stamp name below)

ERC

From: Molly McBride
To: Christina Stiefer; Sheila Clark
Subject: RE: Ashle Penn, 24CR49043
Date: Tuesday, June 10, 2025 1:48:21 PM
Attachments: image003.png

WARNING: This email is from outside of the Oregon Judicial Department. If links or files in this email are unexpected, even if from an email address you trust, please call the sender on the phone and verify them before you click.

Hi Chris,

Here is the summary of the most recent contact violations between Mr. Washington and Ms. Penn:

I read Washington County Sheriff Office police report #50-2025-6479, written by Deputy Hayden King, summarizing a warrant apprehension that occurred on 5/10/2025 involving Mr. Washington. Deputy King responded to a domestic disturbance at an apartment and was advised that the male involved at this location has an active felony warrant, prior to entering the apartment. When Deputy King arrived, a female answered the door, later identified as Ashle Penn. Ms. Penn stated she did not want to answer any questions, the deputies stated they needed to talk to Mr. Washington, and she said she would get him. After a few minutes, the deputies knocked again and Ms. Penn told them she will tell Mr. Washington to speed up, a few more minutes went by, and he did not come to the door. The deputies then knocked again and told Ms. Penn they need to enter the residence and motioned for her to take the child in the apartment to the other side of the room. The deputies called out for Mr. Washington, and he did not reply. While searching a bedroom near the back of the house, the deputies opened a closet and found Mr. Washington sitting inside. They asked him to come out multiple times and he did not reply. Due to Mr. Washington having a large coat on which could conceal weapons, and past incidents and cautions related to Mr. Washington possessing weapons, the deputies used the arc function of the taser. Mr. Washington then stood up and began to exit the closet, he was placed in handcuffs and placed in the patrol vehicle. The warrant was confirmed, and Mr. Washington was transported to Washington County Jail, booked, and lodged.

I reviewed the jail calls from 5/10/2025 through 5/19/2025 made by Mr. Washington. On 5/10/2025 he made multiple calls to a person that sounded like Ms. Penn and had a phone number associated with Ms. Penn in law enforcement databases. On 5/10/2025 Mr. Washington and Ms. Penn argued and I heard her say "I can't believe you were doing what you were doing to me while I was asleep" and Mr. Washington replies saying "you've been choked out before and all kind of sh*t" and the conversation went on to talk about paying for Mr. Washington's calls. There were calls Mr. Washington had with this number (424-242-3374) again on 5/11/2025 and 5/12/2025. I also listened to calls Mr. Washington had with another number (503-828-1688) on 5/14/2025, 5/15/2025, 5/16/2025, 5/17/2025, and 5/18/2025, having multiple calls per day. These calls were with a female voice that sounds like Ms. Penn, and Mr. Washington talked to them about their son and their apartment, as well as discussing his supervision violations.

Thanks,
Molly

From: Christina Stiefer <Christina.STIEFER@ojd.state.or.us>
Sent: Tuesday, June 10, 2025 1:39 PM
To: Sheila Clark <Sheila_Clark@washingtoncountyor.gov>
Cc: Molly McBride <Molly_McBride@washingtoncountyor.gov>
Subject: RE: Ashle Penn, 24CR49043

Thank you Sheila. I appreciate your help.

Chris Stiefer
Pretrial/ Verification/ Set Aside/ Traffic Supervisor
Washington County Circuit Court
503-846-8888 ext. 70587

From: Sheila Clark <Sheila_Clark@washingtoncountyor.gov>
Sent: Tuesday, June 10, 2025 1:38 PM
To: Christina Stiefer <Christina.STIEFER@ojd.state.or.us>
Cc: Molly McBride <Molly_McBride@washingtoncountyor.gov>
Subject: RE: Ashle Penn, 24CR49043

WARNING: This email is from outside of the Oregon Judicial Department. If links or files in this email are unexpected, even if from an email address you trust, please call the sender on the phone and verify them before you click.

Hello. I will forward this to PO Molly Bineham as she has direct information on this and she will respond. Thank you for the information I appreciate it.

(This email may be subject to retention in compliance with Oregon Public Records Laws.)

Thanks,

Sheila Clark
P&P Services Supervisor

Desk: (503) 846-2946
Fax: (503) 846-4509
Main: (503) 846-3400
Email: Sheila_Clark@washingtoncountyor.gov

150 N. First Ave. Suite 200 MS46
Hillsboro, OR 97124

<https://www.washingtoncountyor.gov/>



WASHINGTON COUNTY
OREGON

"Promote behavior change to enhance community safety."

R.E.A.C.H.

Respect – Diversity, Dignity, Inclusion

Equity – Adaptable, Balanced, Just

Accountability – Mine, Yours, Others

Collaboration – Relationships, Partnerships, Commitment

Heart – Courage, Hope, Compassion

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From: Christina Stiefer <Christina.STIEFER@ojd.state.or.us>

Sent: Tuesday, June 10, 2025 12:20 PM

To: Sheila Clark <Sheila_Clark@washingtoncountyor.gov>

Subject: Ashle Penn, 24CR49043

Good afternoon,

Judge Thompson has forwarded an email to the Pretrial Release Office that you had sent regarding Ashle Penn. I understand that you have knowledge that Ms. Penn has been having contact with Mr. Barry Washington who is a co-defendant in her criminal case # 24CR49043. Her release conditions are to not have any contact with Mr. Washington. Would you be willing to send our office an email sharing with us your knowledge of the defendant's contact with her co-defendant? Judge has requested that we prepare a VRA Show Cause for this violation and I will need a little more information to support the affidavit.

I appreciate your assistance. Please let me know if you have any questions.

Christina Stiefer
Pretrial/ Verification/ Set Aside/ Traffic Supervisor
Washington County Circuit Court
215 SW Adams Street
Hillsboro, OR 97123
503-846-8888 ext. 70587

INFO: Washington County email address has changed from @co.washington.or.us to @washingtoncountyor.gov.
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IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

June 13, 2025

Washington County Deputy District Attorney
150 North 1st Ave, Ste 300
Hillsboro OR 97124

Re: State of Oregon vs ASHLE ANTOINETTE PENN
Case #: 24CR49043 Offense Felony

NOTICE OF SIGNED DOCUMENT

A case event that includes a signed document has been added to the Register of Actions for this case.

For further information, log into the Oregon eCourt Case Information (OECI) system or go to a public access kiosk at the courthouse.

Note: Documents may not be attached to events depending on local court business processes.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR WASHINGTON COUNTY

STATE OF OREGON

ORDER

24CR49043
ORFS
Order - Forfeiting Security
19242568



Case No: 24CR49043

DA: Maclean

Defense Attorney: _____

Interpreter: _____ ☐ Language: _____

FTR Courtroom: UEL

Proceeding: ARSC

vs.

Plaintiff

Defendant

Truly named. ☐

Proceeded as named. ☐

Ashlee Antoinette Penn

- ☒ Arraigned ☒ Rights Given ☐ Waived ☐ Not Guilty Plea ☐ Denial ☐ In Custody
Attorney: ☐ Appointed ☐ May Request ☐ Retained ☐ To Be Retained ☐ Waived
OSB#: _____ Name: _____ ☐ DUII Advisory Counsel ☐ Deferred Sentencing Counsel

If arraigned on a Domestic Violence or Sex Crime you are prohibited from contacting the named victim even while in custody

- ☐ Reset to _____ at _____, at Request of: _____
by: Telephone / Letter / Motion / Attorney
☐ Waived speedy constitutional trial/60-day rule rights for this continuance or waiver of 14-day rule for probation violation hearing.
☐ Guilty / No Contest Plea with Sentencing on _____ at _____
☐ Deferred Sentencing ☐ Declined ☐ PSI Ordered: DOB _____ ☐ Atty to be present
☐ Allowed ☐ Ineligible Counts/Charges: _____
☐ Waived Extradition ☐ Requested Governors Warrant Def. Contact Info.: _____

Next Personal Appearance(s): ☐ Preliminary Hearing ☐ Hearing Initial Appearance on _____ at _____
☐ Hearing Status Check ☐ _____ on _____ at _____
☐ Trial ☐ _____ on _____ at _____

Preliminary Hearing: ☐ Prelim Waived ** By: _____
☐ Probable cause found on Ct(s): _____ ☐ Probable cause not found on Ct(s): _____
☐ Information Dismissed ☐ Indicted ** ☐ Waived Indictment ** ** with Next Appearance Date: _____ at _____

☒ Failed To Appear for: ARSC ☒ Security Forfeited: Judgment To Be Entered ☐ Security Not Forfeited At This Time
☒ Revoke Release ☒ Bench Warrant Ordered ☐ Arrest Warrant Ordered Security Amount: \$ 10,000

☐ Judgment of Acquittal Ct(s): _____ ☐ Finding of Not Guilty Ct(s): _____
☐ Judgment of Dismissal Ct(s): _____ ☐ Finding of Guilty Ct(s): _____
☐ Other: _____

Date: 6/23/25

Judge: C. Allen
CCC

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

June 24, 2025

Oregon Public Defense Commission
Contract Services
198 Commercial Street SE, STE 205
Salem OR 97301

Re: State of Oregon vs ASHLE ANTOINETTE PENN
Case #: 24CR49043 Offense Felony
Security: \$250.00

NOTICE OF SECURITY FORFEITURE

ASHLE ANTOINETTE PENN has failed to comply with the conditions of a release agreement. The court has entered an Order declaring the entire security to be forfeit.

If ASHLE ANTOINETTE PENN does not appear to the above court ***or*** satisfy the court that appearance was (or is) impossible ***and*** not the fault of the defendant by **30 days of 06/23/2025**, a judgment will be entered awarding the entire amount of the security ***and*** cost of the proceedings to the state.

The court may not remit any portion of a security that has been ordered applied to a child support obligation.

For more information, see ORS 135.280(3).

Cc: Surety

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON

Petitioner,

vs.

ASHLE PENN,

Defendant

Case No.: 24CR49043

**MOTION TO QUASH WARRANT, DISMISS CHARGES FOR
OUTRAGEOUS GOVERNMENTAL CONDUCT AND FOURTH
AMENDMENT VIOLATION & IN THE ALTERNATIVE
REINSTATE BAIL**

**REQUEST FOR IMMEDIATE TELEPHONIC EVIDENTIARY
HEARING AND FINDS OF FACT**

Disclosure and Certification Pursuant to UTCR 4.010 and 1.090

Pursuant to UTCR 4.010 and 1.090, Defendant certifies that this memorandum is submitted in good faith and that the legal content herein is based on a reasonable inquiry into the law, consistent with applicable ethical and procedural obligations. No known factual misrepresentations are presented, and all legal authorities are either cited directly or drawn from published court opinions or statutory texts.

I. Introduction

1. This memorandum arises from an extraordinary and deeply troubling event: law enforcement entered Defendant's private residence and arrested an individual without a judicially issued warrant, without probable cause, and without exigent circumstances. This warrantless intrusion was not even based on an administrative order for the arrest and detention of the individual but carried out only upon what appears to be a single officer's administrative request—not a duly issued, written, signed, judicial warrant nor administrative detainer has been presented although requested from all relevant authorities.
2. The result of this conduct is not merely a technical or procedural error—it is a violation of constitutional magnitude. Defendant's partner remains confined under the color of authority that the administrative warrant did not impute to arresting officers to effect the arrest, but certainly not to enter Defendant's home.
3. Defendant herself faces pretrial sanctions based solely on information derived from this illegal entry. The State, to this day, has never produced the warrant it claims justifies the intrusion.
4. This Court must not ignore that the constitutional burden of proof—and production—rests squarely with the State. When warrantless government action is challenged, it is not the citizen's duty to prove it was

1 unlawful—it is the State’s unshakable burden to justify it. This memorandum documents the State’s
2 repeated and compounding failures to do so.

3 5. Defendant respectfully submits that the State’s conduct was not only unlawful—it was deeply injurious
4 and constitutionally indefensible. This filing seeks dismissal of the charges due to outrageous
5 governmental conduct that shocks the conscience, and in the alternative, seeks suppression of all
6 evidence, quashing of the resulting warrant, and reinstatement of Defendant’s bail under only lawful and
7 permissible terms.

8 6. At its core, this is about governmental accountability: a warrantless, misrepresented, and traumatic
9 intrusion into a private residence, executed in front of Defendants’ six-year old son, who witnessed his
10 father being taken at gunpoint and executive branch officers wielding powers that were never lawfully
11 conferred. The result has been not only the unlawful confinement of Defendant’s partner, but a cascade
12 of subsequent legal penalties levied against Defendant—all resting on fruit from that poisonous tree.

13 7. Defendant is proceeding pro se without any alternative as she remains on the Court’s unrepresented list
14 even while Oregon Public Defense Commission (OPDC) has reflected a recent appointment, according
15 to OPDC who was contacted by Defendant, this designation is administrative record keeping and does
16 not indicate that new counsel has entered an appearance.

17 8. Defendant, Ash Le’ Penn, and respectfully moves this Court to:

- 18 a. Quash the outstanding warrant for her arrest on several grounds explained herein
- 19 b. Suppress all evidence obtained as a result of an unlawful entry into her private home;
- 20 c. Strike the no-contact condition from the release agreement; and
- 21 d. Reinstate bail with only constitutionally permissible conditions.

22 9. This memorandum in support of the motion to quash is made pursuant to the Fourth and Fourteenth
23 Amendments to the United States Constitution; Article I, Sections 9 and 12 of the Oregon Constitution;
24 Or. Rev. Stat. § 133.005 et seq.; Or. Rev. Stat. § 133.140; Or. Rev. Stat. § 135.233 et seq.; Or. Rev. Stat.
§ 135.240 et seq.; and applicable case law.

25 **II. Warrantless Entry is Presumptively Unreasonable, and the Court Cannot Presume Regularity When** 26 **Challenged**

27 10. Under both the Fourth Amendment to the U.S. Constitution and Article I, § 9 of the Oregon Constitution,
28 entry into a home without a judicially issued warrant is presumptively unconstitutional. See *Payton v.*

1 *New York*, 445 U.S. 573, 586 (1980)(holding entry into a private residence without a warrant is
2 presumptively unreasonable); *State v. Davis*, 295 Or 227, 234 (1983)(holding The Oregon Constitution
3 affords the home its “highest degree of protection” against governmental intrusion).

4 **11.** Critically, when the validity of a warrant is challenged, the Court may not presume regularity. See *State*
5 *v. Johnson*, 335 Or. 511, 521 (2003)(Courts held the State must produce the warrant or lose the
6 presumption). The burden of production and persuasion falls squarely on the State to affirmatively
7 demonstrate the existence of a valid warrant and compliance with all statutory and constitutional
8 requirements. See Or. Rev. Stat. § 133.693(4)(The burden of production and persuasion regarding search
9 and arrest warrants rests entirely on the State); OEC 311(1)(c) holds that evidence willfully suppressed
10 would be averse to the party suppressing it.

11 **12.** The State has failed to meet that burden. Despite multiple requests, it has not produced a judicial warrant
12 or even an administrative order for arrest, but instead presented only an “Offender Information Criminal
13 Warrant Request”—a form that lacks judicial signature, probable cause determination, and legal force.
14 That form is not a warrant and cannot legally authorize residential entry.

14 **III. Factual Record: Consent Denied, Misrepresentation, And Compounding Violations**

15 **13.** On May 10, 2025, Defendant withheld consent for officers to enter and requested they leave to preserve
16 her family's privacy.

17 **14.** Despite this, officers falsely claimed they had a warrant, which was never produced. This
18 misrepresentation compounded the constitutional violation, authorizing entry under false pretenses and
19 triggering a chain of illegal actions—including arrest and evidence collection.

20 **IV. Agency Conduct Was Ultra Vires: No Jurisdiction, No Authority**

21 **15.** Or. Rev. Stat. §§ 137.752 & 144.350 – Jurisdiction over supervisees is defined in the sentencing
22 judgment; only designated supervising authorities may issue detainees.

23 **16.** Under *State v. Smith*, agency custody must comply with statutory jurisdiction; actions outside that
24 framework are void. (See *State v. Smith*, 292 Or App 335, 339–40 (2018))

25 **17.** Under Or. Rev. Stat. § 137.752, supervisory authority must align with sentencing
26 documentation or actions are outside statutory bounds. The supervisee was never sentenced to the legal
27 and physical custody of Washington County Supervisory Authority upon probation revocation. He was
28 sentenced to the legal and physical custody of the Sheriff and WCCCP (Washington County Community

Corrections Program) which is distinct from the Washington County Supervisory Authority demonstrated by their separation on the probation revocation order.

V. Officers Had Independent Duty to Confirm Warrant Validity

18. In the present case, the oversight required of a neutral and detached magistrate capable of determining whether probable cause exists for the requested arrest or search is undeniably absent and indefensible in a case where law enforcement officers have entered the private residence without consent, in the absence of probable cause, where no exigent circumstances or even a validly issued warrant nor administrative detainer is present.

19. Officers are statutorily obligated to verify a warrant exists before executing an arrest or entry. See Or. Rev. Stat. §§ 133.005–133.140.

20. At the Morrissey hearing, Deputy Mock admitted he had seen no warrant, relying solely on a LEDS entry which appears to have derived solely from the request for an order. The process of entering a request for an administrative order for arrest into LEDS is insufficient and violates constitutional standards to one's right to a neutral and detached magistrate's determination of probable cause prior to law enforcement's entry into their home.

21. Because officers failed to conduct a constitutionally sufficient investigation and verification of the warrant prior to execution, they took action that was unreasonable per se and could have been avoided had they been able to verify that the authority under which this "warrant" was in predicated is reasonable suspicion and not probable cause.

VI. Trauma in Front of a Child = Shocking Conduct

15. Officers entered with guns drawn, in front of Defendant's six-year-old child, causing significant trauma during the arrest of her partner, his father.

16. Defendant pleaded with officers not to use lethal force or even the threat of it in front of their child and Officers entered with guns drawn, in the presence of Defendant's six-year-old child, who watched as his father was arrested and taken from their home.

17. The constitutional protections surrounding the home exist precisely to prevent such traumatic and unreviewed invasions. This conduct not only violated Fourth Amendment norms—it shocked the conscience and infringed upon Defendant's Fourteenth Amendment liberty interests in preserving the family sphere. See *Troxel v. Granville*, 530 U.S. 57, 65 (2000).

1 18. For relevant context, the post-prison supervisor issued a request for an abscond warrant for the arrest of
2 the supervisee the day after he reported in office for the fifth time in a month, as will reflect in the
3 agency's record, two of those reports occurred in the home he was arrested. The contact standard
4 established by the Oregon Administrative Community Corrections Directions (OACCD) establishes for
5 even those on high supervision three contacts per thirty days is required and here a "warrant" was issued.

6 19. Defendant brings this to the court's attention to remind the court, and Defendant is aware the court is
7 likely highly apprised of just how dangerous the color of authority becomes when it is not checked and
8 law enforcement officers enter a home prepared to kill an individual who did not satisfy the requisite
9 threshold to conclude that an abscond warrant was necessary, but who still has been in custody for the
10 past two months because officers believed they were entitled to enter Defendant's home to take him
11 under the supervising officer's request.

12 20. Officers acting under the color of the administrative authority of a supervising officer without the neutral
13 and detached probable cause determination by a magistrate when presented with whether or not the entry
14 into a home is constitutionally permissible were required to verify the authority of that warrant.

15 21. Parental rights are fundamental, and government intrusion into the family sphere demands strict scrutiny.
16 As held under *Troxel v. Granville*, 530 U.S. 57, 65 (2000), Government intrusion into family life must be
17 narrowly tailored and justified; here the balancing of highly held parental rights and the sanctity of the
18 home were not observed even under the most minimal constitutional standards when in fact they demand
19 the highest degree of constitutional protection.

20 **VII. The Fruit Of The Poisonous Tree Infects Everything That Followed**

21 22. Every consequence flowing from this entry is infected with constitutional invalidity: the arrest, the
22 officer reports, the revocation of Defendant's bail, and the new charges based on derivative information.
23 See *Wong Sun v. United States*, 371 U.S. 471, 487-88 (1963); *State v. Davis*, 295 Or at 233.

24 23. The doctrine of exclusion is not optional—it is the remedy that restores the rule of law when the
25 government acts outside of it.

26 24. The dual inquiry into law enforcement's actions in this case first present the question of whether a post-
27 prison supervising officer has been lawfully vested with the authority to cause the entry into the private
28 sacrosanct of one's home based on their administrative request for detaining an individual in the absence
of a neutral and detached magistrate. The second question is only necessary if they are so vested, which

1 they are not, but arguendo, this brings the inquiry of whether that authority has been constitutionally
2 exercised.

3 **VIII. The Court's Constitutional Duty to Act**

- 4 **25.** The Court is not merely a passive recipient of claims—it is a guardian of the constitutional structure.
5 When the executive arm violates the home, circumvents judicial process, and compounds its misconduct
6 through misrepresentation, judicial correction is not discretionary—it is required.
- 7 **26.** Dismissal is the only proportionate remedy under these circumstances. No lesser sanction would deter
8 future violations or undo the damage already done.

9 **IX. Ongoing Outrageous Governmental Conduct and Underlying Case Implications**

- 10 **27.** The conduct described herein is not isolated. The underlying charges in Defendant's case arose from
11 similar liberties taken by law enforcement, raising questions about honesty, procedural fairness, and the
12 Defendant's right to a fair trial.
- 13 **28.** The pattern of overreach and disregard for constitutional boundaries continues, and must now be
14 squarely addressed.
- 15 **29.** It is well-established that the constitutional protection against unreasonable searches requires the
16 determination of probable cause to be made by a neutral and detached magistrate of the judicial branch—
17 not by executive or administrative officers engaged in the “often competitive enterprise of ferreting out
18 crime.” See *Johnson v. United States*, 333 U.S. 10, 13–14 (1948).
- 19 **30.** This judicial oversight serves as a vital check on executive power and ensures that the privacy and
20 sanctity of the home are not left to the discretion of enforcement agents acting without impartial review.
21 To permit otherwise would be to erode one of the core structural safeguards of the Fourth Amendment
22 and Article I, section 9 of the Oregon Constitution.
- 23 **31.** The requisite probable cause determination from a neutral and detached magistrate is unjustifiably absent
24 in this case, related to executive officers being permitted to obstruct the very rights that the Fourth
25 Amendment and Article 1 Section 9 were created to protect against.
- 26 **32.** An administrative post-prison supervision officer merely requested a warrant and has the authority to,
27 again, request, such a warrant upon a much lower threshold than probable cause and only upon
28 reasonable suspicion.
- 33.** Officers are not obliged, under *State v. Miller*, to ignore their obligation to arrest solely pursuant a

validly issued arrest warrant or upon probable cause that a crime has been committed.

34. The authority to arrest for violations of post-prison supervision absent probable cause or a validly issued warrant, not simply a request for an administrative warrant, is preserved for the supervising officers themselves and does not impute that same authority to law enforcement. The Oregon Court of Appeals in *Miller* provides,

“Or. Rev. Stat. § 144.350 provides the Department of Corrections (DOC) and other statutorily defined “supervisory authority” with the legal authority to “order the arrest and detention of any person under the supervision of” DOC if the department has reasonable grounds to believe that such a person has violated the conditions of PPS. ORS 144.350(1)(a)(A); ORS 144.087(1) (“[S]upervisory authority’ means the state or local corrections agency or official designated in each county by the county’s board of county commissioners or county court to operate corrections supervision services, custodial facilities, or both.”). The statute says nothing about a police officer’s authority to act on a suspected violation of a PPS condition. Indeed, we have recognized that ORS 144.350 is limited to DOC and the statutorily defined supervisory authority. *State v. Smith*, 292 Or App 335, 339-40, 424 P3d 755 (2018). A police officer’s authority to arrest someone suspected of violating a condition of their parole must come from a PO’s order to arrest the individual. *State v. Meier*, 145 Or App 179, 185-86, 929 P2d 1052 (1996). ORS 144.350 similarly requires an order from a supervisory authority to arrest a person suspected of violating their PPS conditions.”

35. Coincidentally, only DOC and the statutorily defined supervisory authority have been vested with the authority to act upon reasonable suspicion of a violation of post-prison supervision, but according to the revocation of this supervisee's probation, he was not sentenced to the legal or physical custody of Washington County Supervisory Authority making this agency's actions even more outrageous.

X. Who Has Jurisdiction?

36. To be clear, this challenge is not an abstract or collateral attack on another individual's supervision status. It is a direct and constitutionally grounded objection to the authority upon which law enforcement officers claimed entitlement to enter Defendant's private home to effect an arrest—a space entitled to the highest level of protection under both the Fourth Amendment and Article I, section 9 of the Oregon Constitution. The alleged basis for that entry was an administrative “warrant” or order, requested by a supervising officer whose legal authority to initiate such action is, at minimum, subject to serious jurisdictional doubt. Defendant's standing to raise this issue is indisputable: the entry occurred into her home, and the purported legal process that enabled it, even if directed at another, had immediate and

1 unlawful consequences for her. Where the State justifies intrusion into the home by reference to an
2 official process, that process must be valid in both substance and source.

3 **37.** It is critical that this court take judicial notice that the individual for whom the arrest warrant was
4 purportedly issued was not, at the time of the request, under the jurisdiction of the Washington County
5 Supervisory Authority and was not subject to any request for his detention for an alleged violation of his
6 community supervision. This is evident from the revocation judgment entered by the Honorable Ricardo
7 Menchaca in Case No. 21CR25804.

8 **38.** Under Oregon law, the sentencing court's judgment is the operative legal instrument that delegates and
9 defines custodial authority. See Or. Rev. Stat. § 137.752 makes clear that when a defendant is committed
10 to the custody of a particular supervisory authority, such as a county or the Department of Corrections
11 (DOC), that designation is binding and controls which entity has legal and physical custody over the
12 individual.

13 **39.** When a judgment commits a defendant to the custody of the "Sheriff and the WCCCP" (Washington
14 County Community Corrections Program), and not to the Washington County Supervisory Authority,
15 that distinction is not incidental. Each named entity has distinct statutory and administrative functions,
16 and only those expressly designated by the judgment have authority to enforce the sentence or impose
17 custodial sanctions.

18 **40.** This principle is critical: Authority to supervise, detain, or transfer an offender may not be implied or
19 assumed; it must be grounded in the explicit language of the court's judgment.

20 **41.** Any action taken by an entity not named in the judgment, or lacking a valid judicial order authorizing
21 such action, is ultra vires and void for lack of jurisdiction.

22 **42.** The Washington County Community Corrections Program is operated under the umbrella of county
23 corrections but is organizationally distinct from the Local Supervisory Authority (LSA). The counties
24 were delegated responsibility for managing community supervision through Senate Bill 1145. However,
25 the LSA as a defined authority was later established under Senate Bill 156 and carries specific statutory
26 mandates. The judgment's assignment to WCCCP, rather than to the LSA, therefore has legal
27 significance.

28 **43.** Because the request for the arrest and detention of this individual was initiated by Officer Molly
Bineham—acting under the color of authority of the Washington County Supervisory Authority—it is

1 necessary to determine whether she or her agency had jurisdictional authority over this supervisee at the
2 time. Where no such authority exists, the actions taken in the name of that authority—including the
3 warrant request—are ultra vires and legally invalid. A constitutional violation cannot be cured or excused
4 by an agency acting outside its jurisdictional reach.

- 5 **44.** Defendant requested a copy of the “warrant” from officers who asserted its existence and construed that
6 existence to grant them entitlement to enter her private home under its authority to effect an arrest, yet
7 absolutely no documentation has been presented at the time of arrest nor after. Public records requests,
8 requests to jail staff and agents of Washington County have been approached with a request for proof of
9 the purported “warrant” and nothing has been produced. Nothing.

10 **XI. Good Faith Exception Has Exceptions of its Own.**

- 11 **45.** The good faith exception cannot apply in this context as the U.S. Supreme Court who fashioned the good
12 faith exception in *U.S. v. Leon* (1984) also carved out exceptions to the good faith exception. The first
13 exception applies in this case – being that an officer may not rely on the good faith exception in a
14 situation where the warrant is facially defective and so lacking in probable cause as to render official
15 belief in its existence and satisfaction of probable cause entirely unreasonable.
- 16 **46.** In situations where a law enforcement officer acts on a supervising officer’s request to detain an
17 individual—such as a probation or parole officer’s request for a warrant under a reasonable suspicion
18 standard—the legal authority to arrest is not conferred to law enforcement at all.
- 19 **47.** The threshold for arrest by a police officer is distinct from that of a supervising officer. Under Oregon
20 law, a supervising officer (such as a probation or parole officer) may order the detention of a supervisee
21 based on a reasonable suspicion that a condition of supervision has been violated (see Or. Rev. Stat. §
22 137.545(2) and Or. Rev. Stat. § 144.350(1)). However, it is well-settled that this lower standard does not
23 generally extend to police officers, who typically require probable cause to arrest (see Or. Rev. Stat. §
24 133.310; *State v. Cromwell*, 242 Or App 1, 255 P3d 502 (2011)).
- 25 **48.** A law enforcement officer who detains or arrests an individual solely on the basis of a supervising
26 officer’s request—without independent probable cause or judicially issued warrant—exceeds their lawful
27 authority. The courts have recognized that the reasonable suspicion standard applicable to supervising
28 officers does not automatically ascribe the same authority to police officers, except in narrowly defined
circumstances where statutory authority expressly allows it.

1 **49.** What’s more, there has been no showing that any “warrant” was issued as the only presentation to
2 support the claim of authority to enter Defendant’s home pursuant that warrant was an administrative
3 form requesting that law enforcement detain the listed individual – again, the request for the issuance of
4 an order is not tantamount to the order itself.

5 **XII. Was an “LSA” warrant ever issued? If So, Was It Issued in Accordance With the Agency’s Policy?**

6 **50.** While *State v. Johnson*, 335 Or. 511, 521, 73 P.3d 282 (2003), reinforces the purpose of Article I, section
7 9 of the Oregon Constitution—to protect against the admission of evidence obtained in violation of that
8 provision—the analysis cannot stop there. See also *State v. Smith*, 327 Or. 366, 379, 963 P.2d 642
9 (1998).

10 **51.** A court may not assume the validity of a warrant or supervisory order as a foundational matter where
11 substantial procedural irregularities exist or where the record fails to affirmatively establish its lawful
12 issuance.

13 **52.** Under Oregon law, a valid arrest warrant must be issued only upon a sworn showing of probable cause,
14 supported by affidavit or declaration, and must be in writing, specify the person to be arrested, the
15 offense charged, the date of issuance, and be signed by a magistrate. See Or. Rev. Stat. §§ 133.140,
16 133.545; see also *State v. Lee*, 202 Or. App. 110, 120, 120 P.3d 847 (2005). These are not procedural
17 formalities—they are constitutionally grounded safeguards against arbitrary deprivation of liberty.

18 **53.** In contrast, Or. Rev. Stat. § 144.350 authorizes supervising officers to issue an order for the arrest and
19 detention of a supervisee based on reasonable suspicion of a violation of post-prison supervision.
20 Critically, this lower threshold applies only to those agents vested with supervisory authority. It does not
21 automatically extend to law enforcement officers unless they are acting pursuant to a facially valid and
22 properly issued supervisory order.

23 **54.** In the present case, there is no competent evidence that any such order—judicial or administrative—was
24 ever issued, let alone issued in accordance with statutory requirements or agency policy.

25 **55.** At the Morrissey hearing held after arrest, the only document presented was the request for a warrant,
26 submitted by a supervising officer Molly Bineham. No written arrest warrant or supervisory order was
27 produced. The mere existence of a request does not satisfy the requirements of Or. Rev. Stat. §§ 133.140
28 or 144.350 and cannot serve as lawful authority to trespass into a constitutionally protected space to
 effect an arrest and later use information gathered in the process of that unlawful entry to pursue averse

1 legal action in revoking ones' bail and release or any subsequent confinement.

2 **56.** The court may not presume regularity in the issuance of a warrant or order where the record is silent or
3 where indications of procedural noncompliance exist. Cf. *State v. Johnson*, 335 Or. at 521. Such
4 presumptions would erode the textual guarantees of Article I, section 9 and undermine the statutory
5 framework governing arrests and detentions in Oregon.

6 **57.** Accordingly, the prosecution must be required to produce the actual written warrant or supervisory order
7 and evidence of compliance with applicable procedural safeguards. If the State cannot demonstrate that a
8 valid order was issued prior to arrest and properly executed, any evidence and agency action taken as a
9 derivative the resulting unlawful entry, including the arrest warrant pending for Defendant as well as the
10 current confinement of the arrestee must be vacated, found unconstitutional, and the arrest and detention
11 deemed unlawful. This outcome is compelled by both constitutional and statutory mandates, which
12 demand strict adherence to lawful procedure when individual liberty is at stake.

13 **58.** The principle is straightforward: a request for an administrative order of arrest and detention is not
14 equivalent to the lawful issuance of such an order. It cannot serve as a surrogate for proper legal process,
15 nor can it justify governmental conduct that results in the deprivation of a person's liberty. To treat a
16 mere request as legally operative is to collapse the distinction between procedural compliance and
17 executive convenience—effectively authorizing agencies to disregard the very safeguards designed to
18 protect the liberty interests that the Constitution guarantees to all, including those charged with enforcing
19 it.

20 **59.** Where there has been no finding of probable cause by a neutral and detached magistrate, and where law
21 enforcement officers execute an administrative request—parading as a judicially authorized “warrant”—
22 originating from an individual post-prison supervising officer and not from the supervisory authority
23 itself, there exists no lawful predicate for entry into a private residence. In the absence of a valid judicial
24 warrant or exigent circumstance, such entry violates the core protections of the Fourth Amendment and
25 Article I, section 9 of the Oregon Constitution. The Court is therefore compelled to recognize the
26 constitutional infirmity of the intrusion and to suppress all evidence derived therefrom as a product of
27 that unlawful government action.

28 **60.** No judicially authorized arrest warrant—signed, written, and issued in adherence with Or. Rev. Stat. §
133.140—was ever produced or relied upon. Defendant's constitutional protections under the Fourth

1 Amendment and Article I, Section 9 of the Oregon Constitution cannot be subject to the whim and
2 caprice of the limitations of the Law Enforcement Data System (LEDS) or the unilateral actions of
3 community corrections personnel, which often occur explicitly out of judicial purview.

4 **61.** The law is unequivocal: only a judicially issued warrant, not an administrative detainer or LEDS entry,
5 authorizes law enforcement to enter a private residence to effect an arrest. See *State v. Kruchek*, 156 Or
6 App 617, 622 (1998); *State v. Mast*, 250 Or App 605, 613, 282 P3d 930 (2012); *State v. Miller*, 332 Or
7 App 86, 505 P3d 1058 (2025).

8 **62.** Any judicial support or reliance on an administrative request for an administrative order disguised as a
9 “warrant” in criminal justice information systems, in this context is not only constitutionally infirm, but
10 duplicitous of the authority delegated by legislature to these agents of public bodies. If the court permits
11 such conduct to go unchecked, agency action stands to subsume legislative authority under
12 administrative deference to its interpretation of the law and constant attempts to expand its jurisdiction.

13 **63.** When held up next to a presumptively unreasonable standard of warrantless entry into the home in regard
14 to law enforcement officers, specifically, a singular supervising officer’s authority to intrude upon the
15 sanctity of one’s home or even presume to make another executive officer believe that they are entitled
16 to do so is specious, constitutionally irreconcilable and irreparable to one’s belief in the sanctity of their
17 home.

18 **64.** This court should undeniably find that such reasoning is objectively unreasonable considering centuries
19 of legal doctrine shielding the most sacrosanct space protected by the Fourth Amendment and Article I,
20 section 9 of the Oregon Constitution.

21 **65.** Oregon courts have consistently echoed this principle, holding that ‘the home is accorded the highest
22 degree of constitutional protection.’ See *State v. Davis*, 295 Or. 227, 234, 666 P.2d 802 (1983). Any
23 entry into this space without a judicial warrant or a recognized and narrowly defined exception is per se
24 unconstitutional and unreasonable.

25 **66.** The subsequent warrant issued for Defendant’s arrest is undeniably the product of an unlawful entry into
26 Defendant’s home as it is based on the reports from the arresting officers.

27 **67.** The same supervising officer who requested that an administrative warrant be issued here is the same
28 officer who produced for the court the police reports containing details of information gathered and
subsequently is attempted to be used as evidence to support the revocation of Defendant’s bail and

1 release which has prompted the court to take action against Defendant that is prohibited in light of the
2 fact the information gathered is fruit of the poisonous tree.

3 **68.** Supervising Officer Molly Bineham did not comply with agency rules in requesting an administrative
4 warrant responsible for officer's entry into Defendant's home.

5 **69.** The administrative warrant was issued in violation of Senate Bill 1510, acts in direct opposition to
6 evidence-based practices, is not supported by the agency's own record and is a gross abuse of agency
7 authority.

8 **70.** Supervising Officer Bineham is aware, or should be aware, that her agency only issues an "abscond
9 warrant" when the agency's definition of abscond has been satisfied – in this case it has not been.

10 **71.** The agency's record will reflect that "absconding" is far from the behavior displayed by the supervisee
11 rendering the entry into Defendant's home to arrest this supervisee absent adherence to the agency's
12 rules. It is not even clear if this less than lawful request for a detainer comes from one who was actually
13 delegated the authority to administer the individual's supervision.

14 **72.** No lawful action can be taken from an unlawful entry in the context of this case, where it cannot be
15 disputed that there was absolutely no neutral and detached magistrate's oversight, probable cause,
16 exigency or even a basis to rely on with respect to the agency's own policy lacking. Any information to
17 which officers became privy in entering Defendants' home was obtained solely through the violation of
18 Defendant's right to the privacy and sanctity of her home without the requisite probable cause
19 determination .

20 **73.** The exclusionary rule, as articulated in *Wong Sun v. United States*, 371 U.S. 471, 487-88 (1963), and
21 adopted by Oregon courts (see *State v. Davis*, 295 Or 227, 233 (1983)), mandates that all evidence and
22 derivative information obtained as a result of such an unlawful entry must be suppressed.

23 **74.** The constitutional protections guaranteed by the Fourth Amendment and Article I, Section 9 of the
24 Oregon Constitution are not subject to circumvention by administrative processes or the absence of
25 judicial oversight.

26 **XIII. Judicial Discretion Over Release Conditions Is Not Unlimited**

27 **75.** Under Senate Bill 48 and Or. Rev. Stat. § 135.240, courts must apply a three-tiered approach to pretrial
28 release: (1) Release on Recognizance (ROR), (2) Conditional Release, (3) Security Release (bail). ROR
is presumptively required unless the Court makes express findings to support a higher tier.

1 76. Defendant was never afforded this first-tier opportunity. She was subjected immediately to release with
2 conditions, in violation of both the statutory structure and the Presiding Judge's standing order.

3 77. Additionally, the no-contact condition imposed between Defendant and another individual is
4 unsupported by any legal or procedural classification. These individuals were never jointly charged,
5 never indicted under the same instrument, and never tried together as required to designate the pair
6 codefendants.

7 78. Courts are not permitted to impose conditions that are arbitrary, overbroad, or unrelated to the purpose of
8 release. See *State v. Illig-Renn*, 341 Or 228 (2006); *City of Chicago v. Morales*, 527 U.S. 41 (1999).

9 79. Release conditions must be narrowly tailored, bear a nexus to the charged offense, and relate directly to
10 flight risk or danger to others. None of those criteria are met here.

11 **XIV. Prayer For Relief**

12 Defendant respectfully requests the following:

13 80. That the Court dismiss the charges against Defendant in their entirety due to outrageous governmental
14 conduct, warrantless entry, and constitutional violations;

15 81. In the alternative, the Court quash the outstanding arrest warrant, as it arose from invalid and tainted
16 evidence unsupported by requisite authority to have come across such information;

17 82. That all evidence obtained through or following the unlawful entry be suppressed as fruit of the
18 poisonous tree;

19 83. That the no-contact condition be struck as improperly imposed and unsupported by legal authority;

20 84. That Defendant's bail be reinstated under constitutionally permissible conditions;

21 85. That the Court make specific findings of fact in support of any disposition to preserve appellate review;

22 86. And that the Court grant any other relief that justice requires.

23 Respectfully submitted,

24 Dated this first day of July 2025

25 

26 AshLe Penn, Defendant, Pro Se
27
28

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON

Petitioner,

vs.

ASHLE PENN,

Defendant

Case No.: 24CR49043

DECLARATION IN SUPPORT OF MOTION TO QUASH

ARREST WARRANT, SUPPRESS EVIDENCE, AND

REINSTATE BAIL CONDITIONS

**REQUEST FOR IMMEDIATE TELEPHONIC EVIDENTIARY
HEARING AND FINDINGS OF FACT**

I, AshLe' Penn, declare the following:

1. Identity and Purpose

I am the Defendant in this matter. I appear pro se, without the benefit of appointed counsel. Although the Oregon Public Defense Commission (OPDC) lists a technical appointment, no attorney has entered an appearance or contacted me.

I submit this declaration in support of my Motion to Quash the Arrest Warrant, Suppress All Illegally Obtained Evidence, Dismiss the Charges for Outrageous Governmental Conduct, and Reinstate Lawful Release Conditions.

2. Warrantless Entry and Lack of Consent

On May 10, 2025, officers from the Washington County Sheriff's Office entered my private home without a judicially issued warrant, without my consent, and without any exigent circumstances.

I expressly objected to their entry and locked the door. Officers forced entry anyway, claiming they had authority under a "warrant" which has never been produced despite repeated requests.

The only documentation made available was an Offender Information Criminal Warrant Request — a form lacking judicial signature, affidavit, or legal force. This document is not a valid arrest warrant and cannot authorize entry into a private residence.

3. Arrest of My Partner and Resulting Harm to Me

The entry was conducted for the purpose of arresting my partner, who was taken from my home. That arrest was the direct result of an invalid administrative request made by a supervising officer acting outside her legal and policy-based authority.

1 After that incident, I became the subject of an arrest warrant — based solely on information obtained
2 during that unlawful entry. That warrant is constitutionally tainted.

3 **4. Supervising Officer Lacked Legal and Administrative Authority**

4 The supervising officer who initiated the warrant request — Officer Molly Bineham — had no
5 jurisdiction to supervise or sanction my partner. The judgment in his case placed him in the custody of the Sheriff
6 and Washington County Community Corrections Program, not the Local Supervisory Authority (LSA). Therefore,
7 her actions were ultra vires.

8 Additionally, even assuming authority, Officer Bineham failed to comply with her own agency’s policies
9 regarding abscond status. According to the Oregon Administrative Community Corrections Directives (OACCD)
10 and agency standards, an “abscond” designation requires a demonstrated failure to maintain required contact
11 standards — typically three contacts per thirty days for high-level supervision.

12 My partner had reported five times in the thirty days preceding the warrant, including a report made the
13 day before the warrant was issued.

14 These facts preclude any lawful finding of absconding under agency standards, rendering the request for
15 a warrant invalid both legally and administratively.

16 There is no lawful justification for the issuance of any warrant, judicial or administrative, under these
17 circumstances — and certainly no legal basis for officers to enter my home.

18 **5. No Codefendant Status and Improper Release Conditions**

19 I have never had a codefendant. I was not charged with my partner, indicted jointly, or designated as part
20 of the same case. There is no lawful basis for the court to impose a no-contact order on that basis.

21 Before signing my release agreement, I lawfully struck the no-contact condition. Jail staff accepted the
22 modification and processed my release without requiring a new form. That condition is not enforceable, and no
23 violation has occurred.

24 Despite this, a new arrest warrant has been issued for me — again, based entirely on information
25 gathered from the original unlawful entry.

26 **6. No Hearing Notice, No Due Process**

27 I was never provided notice of a hearing related to the alleged release violation. The presiding judge had
28 previously informed me that all hearings were cancelled pending appointment of new counsel. I relied on that
assurance, and no counsel contacted me.

1 The issuance of a warrant based on an unnotified, off-calendar hearing is a violation of due process under
2 the Fourteenth Amendment and Article I, Section 10 of the Oregon Constitution.

3 **7. Trauma Inflicted on My Family**

4 My six-year-old child witnessed officers enter our home with guns drawn and remove his father. That
5 trauma is ongoing and severe.

6 The conduct of the officers — acting without lawful warrant, exigency, or authority — violated the
7 sanctity of my home and the protected family unit under *Troxel v. Granville*, 530 U.S. 57 (2000), and Oregon law.

8 **8. Legal Certification**

9 I certify under UTCR 4.010 that this declaration is submitted in good faith and based on facts personally
10 known to me.

11 I acknowledge under UTCR 1.090 and ORS 162.085 that knowingly submitting false statements may
12 result in penalties. This declaration complies with the Oregon Rules of Civil Procedure, Uniform Trial Court
13 Rules, and all local court requirements.

14 **9. Relief Requested**

15 I respectfully request that this Court:

- 16 • Quash the arrest warrant issued against me;
- 17 • Suppress all evidence and derivative information gathered during the unlawful entry into my home;
- 18 • Dismiss the pending charges on the basis of outrageous governmental conduct and unconstitutional
19 agency action;
- 20 • Strike the no-contact condition from the release agreement as procedurally and legally unsupported;
- 21 • Reinstate release conditions or bail consistent with constitutional protections and statutory requirements.

22 I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

23 Executed this 1st day of July, 2025

24 Washington County, Oregon



AshLe' Penn
Defendant, Pro Se

27 _____
AshLe Penn, Defendant, Pro Se

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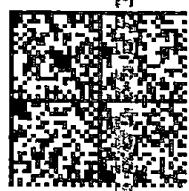
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24CR49043
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13 REF: 57005

1. The first step in the process of creating a new product is to identify a market need. This involves conducting market research to understand what consumers want and what problems they are facing. Once a need is identified, the next step is to develop a concept that addresses this need. This is often done through brainstorming sessions with a team of designers and engineers.

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124
503-846-8888 <http://courts.oregon.gov/washington>

June 24, 2025

ASHLE ANTOINETTE PENN
~~710 NW AUTUMN CREEK WAY APT L304~~
~~BEAVERTON OR 97006~~

Re: State of Oregon vs ASHLE ANTOINETTE PENN
Case #: 24CR49043 Offense Felony
Security: \$250.00

24CR49043
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NOTICE OF SECURITY FORFEITURE

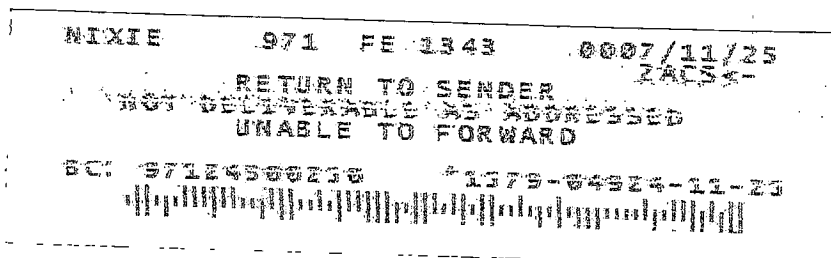
ASHLE ANTOINETTE PENN has failed to comply with the conditions of a release agreement. The court has entered an Order declaring the entire security to be forfeit.

If ASHLE ANTOINETTE PENN does not appear to the above court **or** satisfy the court that appearance was (or is) impossible **and** not the fault of the defendant by **30 days of 06/23/2025**, a judgment will be entered awarding the entire amount of the security **and** cost of the proceedings to the state.

The court may not remit any portion of a security that has been ordered applied to a child support obligation.

For more information, see ORS 135.280(3).

Cc: Surety



Verified Correct Copy of Original 7/15/2025.

Case # _____

REQUEST FOR COURT HEARING RE:

[] Remission of Security Forfeiture

☐ Modify or Set Aside Security Judgment

I, _____, ☐ DEFENDANT, ☐ SURETY
request a hearing before a judge of the Circuit Court to apply for a remission of the forfeiture of
security deposit in this case and to request that the judgment entered against me for the full security
release amount be modified or set aside.

☐ Check the box if you will require an interpreter. Language: _____

The appearance and surrender of the defendant in this case was, or still is, impossible and without fault of the defendant because: Explain below.

Date _____

State

Zip

(Home)

(Work)

WASHINGTON COUNTY CIRCUIT COURT
CALENDARING OFFICE, MS 37
150 N FIRST AVENUE
HILLSBORO, OR 97124

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON
150 N First Avenue Hillsboro Oregon 97124

State of Oregon

Case No: 24CR49043

v.

☒ Limited ☐ Supplemental

**JUDGMENT OF FORFEITURE
OF SECURITY**

ASHLE ANTOINETTE PENN

Defendant

An Order forfeiting security was entered in this case on 06/23/2025

The defendant and any surety were notified on 06/24/2025

The defendant did not appear before the court within 30 days of the Order and did not demonstrate to the court's satisfaction that failure to appear or surrender was not the defendant's fault.

Therefore, judgment is entered against the defendant for the forfeiture of security funds in the amount of \$2,500.00.

MONEY AWARD

1. Judgment Creditor: State of Oregon, 150 N First Avenue Hillsboro Oregon 97124

2. Judgment Debtor :

Name	Address	Year of Birth	Lawyer Name
ASHLE ANTOINETTE PENN	2850 SW Cedar Hills Blvd # 234 Beaverton OR 97005	1988	Oregon Public Defense Commission

No person or public body other than Judgment Creditor and Judgment Creditor's lawyer is entitled to any part of this money award

The total amount awarded by this judgment is \$2,500.00

This Judgment is entered solely to resolve the issues under ORS 135.280(3) regarding the forfeiture of security. It does not dispose of any charges or other issues in the case

7/31/2025 10:50:42 AM



Circuit Court Judge Pro Tem,
Chris C. Colburn

IN THE COURT OF APPEALS OF THE STATE OF OREGON

State of Oregon,
Plaintiff-Respondent,

v.

AshLe Antoinette Penn,
Defendant-Appellant.

Washington County Circuit Court No. 24CR49043

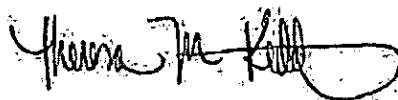
Court of Appeals No. A188234

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OREGON JUDICIAL DEPARTMENT
WASHINGTON COUNTY
2025 AUG 15 PM 3:46

ORDER OF DISMISSAL

On July 24, 2025, appellant filed a notice of appeal from "the interlocutory order entered by the circuit court on June 4, 2025, denying the motion to dismiss filed by Defendant's previous counsel." The decision from which the appeal is taken is not appealable under ORS 138.035. Therefore, the appeal is dismissed on the ground that the Court of Appeals lacks jurisdiction to hear the appeal.

Appeal dismissed.



Theresa Kidd
Appellate Commissioner
08/15/2025

DESIGNATION OF PREVAILING PARTY AND AWARD OF COSTS

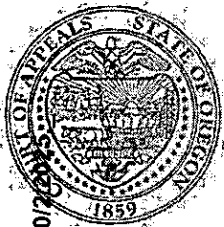
Prevailing party: Respondent

No costs allowed

c: AshLe Antoinette Penn
Benjamin Gutman
Washington County Transcript Coordinator

ORDER OF DISMISSAL

Appellate Court Administrator, Appellate Court Records Section
1163 State Street, Salem, Oregon 97301-2563



Verified Correct Copy of Original 10/2/2025

IN THE COURT OF APPEALS OF THE STATE OF OREGON

State of Oregon,
Plaintiff-Respondent,

v.

AshLe Antoinette Penn,
Defendant-Appellant.

Washington County Circuit Court
24CR49043

A188234

FILED
OREGON JUDICIAL DEPT
WASHINGTON COUNTY
2025 OCT -2 P 12:32

APPELLATE JUDGMENT

On July 24, 2025, appellant filed a notice of appeal from "the interlocutory order entered by the circuit court on June 4, 2025, denying the motion to dismiss filed by Defendant's previous counsel." The decision from which the appeal is taken is not appealable under ORS 138.035. Therefore, the appeal is dismissed on the ground that the Court of Appeals lacks jurisdiction to hear the appeal.

Appeal dismissed.

August 15, 2025

DATE

/s/ Theresa Kidd

Appellate Commissioner,
Court of Appeals

DESIGNATION OF PREVAILING PARTY AND AWARD OF COSTS

Prevailing party: Respondent.

No costs allowed.

Oregon Court of Appeals:

Appellate Judgment Effective Date: October 01, 2025

NOTE: This is the appellate judgment of the Oregon Court of Appeals and should be entered pursuant to ORS 19.450.

APPELLATE JUDGMENT

Appellate Court Administrator, Appellate Court Records Section
1163 State Street, Salem, Oregon 97301-2563
Page 1 of 1